

COMPLETE LEARNING SESSION

Supreme Court - Complete Repaired Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 18 - Supreme Court - Complete Topic Package

Subject: Indian Polity | **Topic:** 18 | **GS-II + Prelims** | **Controlled to:** 7 September 2026 **Source order:** canonical Supreme Court Markdown owners -> OCR-searchable local polity PDFs -> Constitution, statutes, judgments, Supreme Court and institutional sources -> Qdrant not required. **Learning contract:** Foundation/Core is independently answer-complete. Optional Advanced is separately labelled. Consolidated register notes remain the final H2 section.

Current legal and institutional control

- [FACT] Articles **124-147 in Part V** establish and regulate the Union Judiciary; connected provisions are decoded where they operate directly.
- [FACT] The **Supreme Court (Number of Judges) Amendment Act, 2026 (Act 14 of 2026)**, section 2 substituted **thirty-seven** for **thirty-three** in the 1956 Act and is deemed in force from **16 May 2026**. Sanctioned strength is **38 including the CJI**.
- [CURRENT] The official Supreme Court roster listed **34 sitting judges, including Chief Justice of India Justice Surya Kant, on 7 September 2026**. The dated vacancy count was therefore **four**. These figures must be re-verified before later use.
- [CURRENT] The official Court continues to provide e-filing and live-stream access. *Swapnil Tripathi v. Supreme Court of India* (2018) supplies the open-justice foundation for live streaming of suitable proceedings, subject to safeguards.
- [LIMIT] No unsupported live pendency total is frozen. The latest comprehensive official annual report relied on remains 2024-25.
- [CURRENT] The 20 November 2025 Article 143 assent opinion, **2025 INSC 1333**, rejected rigid court-made assent timelines and deemed assent under Article 142 while preserving limited review of prolonged unexplained inaction. It is advisory and did not "overrule" the 8 April 2025 Tamil Nadu judgment.

Roadmap

Sequence	Outcome
Sessions 1-7	origin, composition, appointments, collegium/NJAC, tenure, independence and accountability
Sessions 8-16	complete jurisdiction map, writs, appeals, advice, review, contempt, precedent, complete justice and temporary judges
Sessions 17-21	judicial review, tribunals, PIL, judicial legislation and environmental constitutionalism
Sessions 22-26	diversity, comparison, profession, access, technology and reform
Practice	exactly 32 original MCQs, seven routed Prelims PYQs, eight routed Mains PYQs and six original Mains answers
Optional Advanced	deeper analytical enrichment after the complete Core
Register notes	final compressed recall followed by the 12-panel ASCII master

BASIC LEARNING SESSION

SESSION 1 - HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY

VISUAL FIRST

Privy Council -> Federal Court (1937) -> Constitution -> Supreme Court (28 January 1950)

This gateway locates historical transition and the integrated judiciary before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An integrated judiciary uses one court hierarchy to apply both Union and State law.

Technical definition: Articles 124-147 establish the Supreme Court at the apex while Articles 214, 226, 227 and 235 preserve constitutionally distinct High Courts and subordinate-court control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 1950 transition replaced imperial final appeal with a constitutional apex inside one integrated but territorially distributed judicial system.

MUST-WRITE KEYWORDS

- integrated judiciary
- Federal Court
- Privy Council
- Article 141
- High Courts

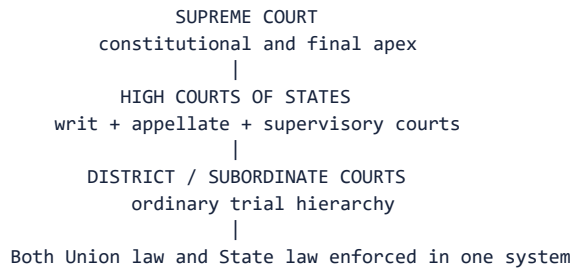
How to use them: Frame the answer through integrated judiciary; define Federal Court, connect Privy Council with Article 141 to explain the mechanism, and use High Courts for the decisive comparison or qualification.

Visual 1 - Institutional lineage

```
Privy Council in London
|
v
Federal Court of India, 1937
|
v
Constitution commences, 26 January 1950
|
v
Supreme Court inaugurated, 28 January 1950
|
v
Final constitutional + civil + criminal appellate court
```

- [FACT] The Supreme Court succeeded the Federal Court established under the Government of India Act, 1935, and replaced the Privy Council as the final appellate authority.
- [FACT] It was inaugurated on **28 January 1950**.
- [FACT] Articles **124-147 in Part V** establish the Union Judiciary.
- [ANALYSIS] The transition marks constitutional self-government: final legal authority moved from an imperial appellate body to a court created and limited by the Constitution of India.

Visual 2 - One integrated hierarchy



- [FACT] India has an **integrated or single judiciary**. The same hierarchy applies Union and State law.
- [ANALYSIS] Integration promotes uniform constitutional meaning through Article 141 while High Courts preserve decentralised constitutional access through Article 226.
- [LIMIT] "Integrated" does not mean administratively centralised in every respect. High Courts control the subordinate judiciary under Article 235, and States remain important for infrastructure.

Core thesis: The Supreme Court is the apex of one judicial system, but constitutional justice is delivered through a distributed network of High Courts and subordinate courts.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The Supreme Court converted final appeal from imperial supervision into constitutional adjudication.
- **Named evidence:** Articles 124-147 and the 28 January 1950 inauguration replaced the Federal Court/Privy Council endpoint.
- **Analysis:** One integrated hierarchy now applies Union and State law while Article 141 supplies national legal coherence.
- **Qualification:** Integration does not erase the autonomous constitutional position of High Courts under Articles 226, 227 and 235.
- **Prelims trap:** Integrated judiciary does not mean that High Courts are administrative branches of the Supreme Court.
- **Mains use:** Use this paragraph to introduce the Court's constitutional identity and historical transition.
- **Mini recap:** Constitutional apex, integrated hierarchy, territorially distributed justice.

Paragraph model: The Supreme Court converted final appeal from imperial supervision into constitutional adjudication. Articles 124-147 and the 28 January 1950 inauguration replaced the Federal Court/Privy Council endpoint. One integrated hierarchy now applies Union and State law while Article 141 supplies national legal coherence. Integration does not erase the autonomous constitutional position of High Courts under Articles 226, 227 and 235.

CLOSING RECALL FLOW - HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY

START / CONCEPT: Historical transition and the integrated judiciary

|
v

EXACT TERMS: integrated judiciary · Federal Court · Privy Council · Article 141 · High Courts

|
v

MECHANISM / ARGUMENT: Apex precedent promotes uniformity while High Courts retain constitutional and administrative authority in their territories.

|
v

CONSEQUENCE / CONTRAST: Integration supports coherent national law without turning High Courts into administrative branches of the Supreme Court.

|
v

UPSC TRAP / ANSWER-USE: Do not equate an integrated hierarchy with unitary judicial administration.

|
v

ANSWER-GRABBING FORMULATION: The 1950 transition replaced imperial final appeal with a constitutional apex inside one integrated but territorially distributed judicial system.

SESSION 2 - CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES

VISUAL FIRST

Article 124 creation -> statutory strength -> Article 130 seat -> Article 145(3) Constitution Bench

This gateway locates constitutional location, composition, seat and benches before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution creates the Supreme Court, while Parliament fixes its authorised number of judges.

Technical definition: Article 124 creates the Court, Article 130 governs its seat and Article 145(3) requires at least five judges for specified constitutional questions and Article 143 references.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Composition, seat and bench strength answer different institutional questions and must not be collapsed into one fact.

MUST-WRITE KEYWORDS

- **Article 124**
- **Article 130**
- **Article 145(3)**
- **sanctioned strength**
- **Constitution Bench**

How to use them: Frame the answer through Article 124; define Article 130, connect Article 145(3) with sanctioned strength to explain the mechanism, and use Constitution Bench for the decisive comparison or qualification.

Visual 3 - Organisation identity card

Feature	Stable constitutional or statutory control
Constitutional range	[FACT] Articles 124-147, Part V
Sanctioned strength	[FACT] 38 including the CJI under Act 14 of 2026
Working strength	[CURRENT] 34 sitting judges on the official roster, checked 7 September 2026; four vacancies against the sanctioned total
Original constitutional design	[FACT] CJI plus not more than seven other judges
Retirement	[FACT] 65 years
Principal seat	[FACT] Delhi under Article 130
Other place of sitting	[FACT] CJI may appoint with the President's approval
Constitution Bench	[FACT] Minimum five judges under Article 145(3)

- [FACT] The **Supreme Court (Number of Judges) Amendment Act, 2026 (Act 14 of 2026)**, section 2 substituted **thirty-seven** for **thirty-three** in section 2 of the 1956 Act and is deemed in force from **16 May 2026**; total sanctioned strength is therefore **38 including the CJI**.
- [CURRENT] The official Supreme Court roster listed **34 sitting judges including CJI Surya Kant on 7 September 2026**, leaving **four vacancies** against the statutory ceiling. [LIMIT] Working strength and vacancies are volatile and must be re-verified before later use.
- [FACT] Article 130 places the Court in Delhi but permits another place or places when the CJI, with presidential approval, so appoints.

Visual 4 - Bench-size ladder

Ordinary matters	usually 2 or 3 judges
Conflict / importance	larger bench as required
Substantial constitutional question	minimum 5 judges
Article 143 reference	minimum 5 judges
Prior larger-bench precedent	cannot be overruled by smaller bench

- [FACT] Article 145(3) requires at least **five judges** to decide a substantial question of law as to constitutional interpretation or to hear an Article 143 reference.
- [LIMIT] Every constitutional argument does not automatically require a Constitution Bench. The question must be substantial and arise for decision.
- [ANALYSIS] Bench strength is an authority rule: a larger bench does not merely have more judges; it has greater precedential weight.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Composition, working strength, seat and bench size answer four different institutional questions.
- **Named evidence:** Article 124 creates the Court; Act 14 of 2026 fixes 37 puisne judges; Articles 130 and 145(3) govern place and the five-judge minimum.
- **Analysis:** The Constitution establishes the institution while Parliament adjusts capacity and the Court allocates judicial business.
- **Qualification:** A vacancy figure is a dated roster fact, and not every constitutional argument requires a Constitution Bench.
- **Prelims trap:** Do not confuse sanctioned strength, working strength, ordinary bench size and Constitution Bench size.
- **Mains use:** Use this paragraph in questions on court capacity, regional benches or Constitution Benches.
- **Mini recap:** Text creates; statute sizes; Article 130 locates; Article 145 structures benches.

Paragraph model: Composition, working strength, seat and bench size answer four different institutional questions. Article 124 creates the Court; Act 14 of 2026 fixes 37 puisne judges; Articles 130 and 145(3) govern place and the five-judge minimum. The Constitution establishes the institution while Parliament adjusts capacity and the Court allocates judicial business. A vacancy figure is a dated roster fact, and not every constitutional argument requires a Constitution Bench.

CLOSING RECALL FLOW - CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES

START / CONCEPT: Constitutional location, composition, seat and benches

|

v

EXACT TERMS: Article 124 • Article 130 • Article 145(3) • sanctioned strength • Constitution Bench

|

v

MECHANISM / ARGUMENT: Parliament changes sanctioned strength by law; the Court constitutes benches under constitutional and procedural rules.

|

v

CONSEQUENCE / CONTRAST: Bench strength controls precedential authority and ensures plural deliberation on substantial constitutional questions.

|

v

UPSC TRAP / ANSWER-USE: Sanctioned strength is not automatically the same as working strength, and not every constitutional plea needs five judges.

|

v

ANSWER-GRABBING FORMULATION: Composition, seat and bench strength answer different institutional questions and must not be collapsed into one fact.

SESSION 3 - APPOINTMENT ARCHITECTURE AND THE CJI CONVENTION

VISUAL FIRST

Article 124 appointment -> collegium recommendation -> Union processing -> presidential warrant

This gateway locates appointment architecture and the cji convention before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Supreme Court judges are formally appointed by the President through a process now controlled by collegium recommendations.

Technical definition: Article 124 appointment text operates with the Judges Cases, the Memorandum of Procedure and a seniority convention for appointing the Chief Justice of India.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The appointment system separates the formal appointing authority from the institution that has decisive recommending primacy.

MUST-WRITE KEYWORDS

- **Article 124**
- **President**
- **collegium**
- **Memorandum of Procedure**
- **seniority convention**

How to use them: Frame the answer through Article 124; define President, connect collegium with Memorandum of Procedure to explain the mechanism, and use seniority convention for the decisive comparison or qualification.

Visual 5 - Appointment map

Constitutional text: President appoints under Article 124
|
judicially developed collegium
|
recommendation -> Union processing -> President appoints
|
executive may return a name once for reconsideration
|
reiterated recommendation carries binding judicial weight

- [FACT] Supreme Court judges are appointed by the **President under Article 124**.
- [FACT] The Constitution uses consultation language; the controlling appointment mechanism is the judicially created collegium.
- [ANALYSIS] Formal appointment remains executive, but decisive selection is judicial in order to insulate adjudication from executive dominance.
- [LIMIT] The collegium is not written into the Constitution and should never be described as a constitutional body.

Appointment of the Chief Justice of India

- [FACT] Appointment is formally by the President.
- [ANALYSIS] The settled convention is appointment of the senior-most Supreme Court judge considered fit.
- [FACT] The convention was broken in the supersessions of **1973** and **1977**, associated with Justices A.N. Ray and M.H. Beg.
- [LIMIT] Seniority is a convention, not an express Article 124 command.
- [CURRENT] Justice Surya Kant became the CJI on 24 November 2025. [LIMIT] Use the officeholder only for a current-affairs hook; UPSC usually tests the institution, not biographical trivia.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The appointment system separates the formal constitutional appointer from the institution holding decisive recommending primacy.
- **Named evidence:** Article 124 names the President; the Judges Cases make the CJI-led collegium's view institutionally controlling.
- **Analysis:** This division seeks to prevent executive patronage while retaining formal inter-branch processing.
- **Qualification:** The senior-most-judge rule for appointing the CJI is convention and Memorandum-of-Procedure practice, not constitutional text.
- **Prelims trap:** Never describe the collegium as a body created by Article 124.
- **Mains use:** Use this paragraph to distinguish text, judgment, convention and current appointment practice.
- **Mini recap:** Formal appointment is executive; decisive recommendation is judicial; seniority is conventional.

Paragraph model: The appointment system separates the formal constitutional appointer from the institution holding decisive recommending primacy. Article 124 names the President; the Judges Cases make the CJI-led collegium's view institutionally controlling. This division seeks to prevent executive patronage while retaining formal inter-branch processing. The senior-most-judge rule for appointing the CJI is convention and Memorandum-of-Procedure practice, not constitutional text.

CLOSING RECALL FLOW - APPOINTMENT ARCHITECTURE AND THE CJI CONVENTION

START / CONCEPT: Appointment architecture and the CJI convention

|
v

EXACT TERMS: Article 124 · President · collegium · Memorandum of Procedure · seniority convention

|
v

MECHANISM / ARGUMENT: The collegium recommends, the Union processes and the President appoints; a reiterated recommendation carries binding judicial weight.

|
v

CONSEQUENCE / CONTRAST: The arrangement protects decisional independence but creates a transparency and accountability debate.

|
v

UPSC TRAP / ANSWER-USE: The collegium is a judicial creation and CJI seniority is a convention, not express constitutional text.

|
v

ANSWER-GRABBING FORMULATION: The appointment system separates the formal appointing authority from the institution that has decisive recommending primacy.

SESSION 4 - THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC

VISUAL FIRST

1981 executive primacy -> 1993 collegium -> 1998 plurality -> 2014 NJAC -> 2015 invalidation

This gateway locates the judges cases, collegium evolution and njac before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Judges Cases transformed constitutional consultation into judicial primacy over higher-judiciary appointments.

Technical definition: The 1981, 1993 and 1998 decisions moved from executive primacy to concurrence and a plural collegium; the 2015 NJAC judgment restored that system after invalidating the 99th Amendment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Judges Cases trace collegium evolution from executive primacy to judicial primacy and frame the NJAC test of judicial independence.

MUST-WRITE KEYWORDS

- **First Judges Case (1981)**
- **Second Judges Case (1993)**
- **Third Judges Case (1998)**
- **NJAC**
- **judicial independence**

How to use them: Frame the answer through First Judges Case (1981); define Second Judges Case (1993), connect Third Judges Case (1998) with NJAC to explain the mechanism, and use judicial independence for the decisive comparison or qualification.

Visual 6 - Appointment doctrine timeline

1981: First Judges Case (1981)
"consultation" -> executive primacy
|
1993: Second Judges Case (1993)
"consultation" -> concurrence; collegium born
|
1998: Third Judges Case (1998)
plural consultation; SC collegium = CJI + 4 senior-most judges
|
2014: 99th Amendment + NJAC Act
commission model enacted
|
2015: Fourth Judges Case (2015)
NJAC invalidated; collegium restored

Stage	Named authority	Controlling proposition
First Judges Case (1981)	<i>S.P. Gupta v. Union of India</i> (1981)	[FACT] Consultation did not mean concurrence; executive primacy
Second Judges Case (1993)	<i>Supreme Court Advocates-on-Record Association</i> (1993)	[FACT] Judicial primacy; collegium created
Third Judges Case (1998)	Presidential Reference (1998)	[FACT] SC collegium for SC appointments: CJI + four senior-most judges
NJAC	99th Amendment and NJAC Act, 2014	[FACT] Six-member appointment commission attempted
Fourth Judges Case (2015)	<i>SCAORA v. Union of India</i> (2015)	[FACT] Amendment and Act struck down; judicial independence/basic structure

Visual 7 - Collegium trade-off matrix

Value protected	Collegium gain	Collegium cost
Judicial independence	Limits executive capture	Judges select judges
Continuity	Senior judicial assessment of professional merit	Criteria may appear opaque
Institutional memory	Knows Bar and Bench performance	Limited public participation
Decisional insulation	Reduces partisan confirmation	Delay and diversity concerns

- [ANALYSIS] The central debate is not independence versus accountability as mutually exclusive values. It is how to create **accountable independence**.
- [FACT] The NJAC judgment treated judicial independence as part of the basic structure.
- [LIMIT] The judgment did not hold that every non-collegium mechanism is inherently unconstitutional. Institutional design must preserve judicial independence.
- [CURRENT] Official Collegium Resolutions remain published, including a Supreme Court appointment statement dated 27 May 2026.
- [LIMIT] Do not claim an exact number of pending names, vacancies or days of delay without a dated official record.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The collegium is the product of a judicial chronology, not a single constitutional clause.
- **Named evidence:** S.P. Gupta (1981), SCAORA (1993), the 1998 Presidential Reference and SCAORA (NJAC, 2015) successively changed appointment control.
- **Analysis:** The sequence moved primacy from the executive to a plural judicial body and then tested that primacy against a commission model.
- **Qualification:** The NJAC ruling invalidated that design for harming judicial independence; it did not forbid every conceivable commission.
- **Prelims trap:** Do not say the First Judges Case created the collegium or that the NJAC judgment constitutionalised judicial self-selection without limits.
- **Mains use:** Use the chronology before evaluating opacity, diversity, delay and accountable independence.
- **Mini recap:** Appointment doctrine evolved through holdings; reform must preserve independence without preserving opacity.

Paragraph model: The collegium is the product of a judicial chronology, not a single constitutional clause. S.P. Gupta (1981), SCAORA (1993), the 1998 Presidential Reference and SCAORA (NJAC, 2015) successively changed appointment control. The sequence moved primacy from the executive to a plural judicial body and then tested that primacy against a commission model. The NJAC ruling invalidated that design for harming judicial independence; it did not forbid every conceivable commission.

CLOSING RECALL FLOW - THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC

START / CONCEPT: The Judges Cases, collegium evolution and NJAC

|
v

EXACT TERMS: First Judges Case (1981) • Second Judges Case (1993) • Third Judges Case (1998) • NJAC
• judicial independence

|
v

MECHANISM / ARGUMENT: Judicial interpretation reallocated recommending primacy and then tested Parliament's commission model against basic-structure independence.

|
v

CONSEQUENCE / CONTRAST: The current system maximises insulation but still requires transparent criteria, diversity and timely processing.

|
v

UPSC TRAP / ANSWER-USE: The NJAC judgment invalidated its particular design; it did not declare every conceivable commission unconstitutional.

|
v

ANSWER-GRABBING FORMULATION: The Judges Cases trace collegium evolution from executive primacy to judicial primacy and frame the NJAC test of judicial independence.

SESSION 5 - QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT

VISUAL FIRST

Eligibility -> oath -> protected service -> retirement/resignation/removal

This gateway locates qualifications, oath, tenure, salary and exit before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Supreme Court judge enters through constitutional qualifications and leaves by retirement, resignation or removal.

Technical definition: Articles 124(3)-(7), 125 and 146 govern eligibility, oath, tenure, protected conditions, the post-retirement practice bar and institutional expenses.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Qualifications, oath, tenure, salary protection and constitutional exit routes together create the judge's service-cycle firewall.

MUST-WRITE KEYWORDS

- **Article 124**
- **distinguished jurist**
- **retirement at 65**
- **Article 125**
- **Article 124(7)**

How to use them: Frame the answer through Article 124; define distinguished jurist, connect retirement at 65 with Article 125 to explain the mechanism, and use Article 124(7) for the decisive comparison or qualification.

Visual 8 - Judge lifecycle

ELIGIBILITY

Indian citizen +
5 years as HC judge
OR 10 years as HC advocate
OR distinguished jurist in President's opinion

APPOINTMENT

President under Article 124

OATH

President or person appointed by President

SERVICE

security of tenure + protected conditions

EXIT

retirement at 65 / resignation to President / removal under Article 124(4)

- [FACT] There is **no minimum age** for appointment.
- [FACT] A **distinguished jurist** is constitutionally eligible, though the route is exceptional in practice.
- [FACT] Article 124(6) requires an oath or affirmation to bear true faith and allegiance to the Constitution, uphold sovereignty and integrity, and perform duties without fear or favour, affection or ill-will.
- [FACT] A judge retires at **65**, may resign by writing to the President, or may be removed through Article 124(4).
- [FACT] Parliament determines salary by law. Allowances, leave and pension rights cannot be varied to a judge's disadvantage after appointment, except during a Financial Emergency.
- [FACT] Court administrative expenses are charged on the Consolidated Fund of India under Article 146(3).

Removal, not constitutional "impeachment"

Visual 9 - Removal process

Notice signed
 100 Lok Sabha members OR 50 Rajya Sabha members
 |
 Speaker / Chairman may admit or refuse
 |
 Three-member inquiry committee
 SC judge + HC Chief Justice + distinguished jurist
 |
 Charge of proved misbehaviour or incapacity established
 |
 Each House passes address by special majority
 majority of total membership
 + two-thirds present and voting
 |
 President orders removal

- [FACT] The Constitution calls this **removal**, not impeachment. "Impeachment of judges" is common journalistic usage but technically imprecise.
- [FACT] The grounds are **proved misbehaviour or incapacity**.
- [FACT] The notice thresholds under the Judges (Inquiry) Act, 1968 are **100 Lok Sabha members** or **50 Rajya Sabha members**.
- [FACT] Each House must satisfy both special-majority limbs.
- [FACT] **No Supreme Court judge has ever been removed.**
- [ANALYSIS] The high threshold protects decisional independence but leaves a gap between informal correction and the ultimate sanction.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** A judge's lifecycle is constitutionally designed to combine professional eligibility with decisional security.
- **Named evidence:** Article 124 provides citizenship plus the five-year judge, ten-year advocate or distinguished-jurist routes, oath, age 65 and removal grounds.
- **Analysis:** Protected tenure and conditions reduce dependence on political favour after appointment.
- **Qualification:** No minimum appointment age is prescribed, and the distinguished-jurist route remains legally available despite non-use.
- **Prelims trap:** Do not transfer the High Court retirement age of 62 to the Supreme Court.
- **Mains use:** Use this paragraph in appointment, tenure and independence answers.
- **Mini recap:** Eligibility opens the office; oath disciplines it; tenure protects it; removal remains exceptional.

Paragraph model: A judge's lifecycle is constitutionally designed to combine professional eligibility with decisional security. Article 124 provides citizenship plus the five-year judge, ten-year advocate or distinguished-jurist routes, oath, age 65 and removal grounds. Protected tenure and conditions reduce dependence on political favour after appointment. No minimum appointment age is prescribed, and the distinguished-jurist route remains legally available despite non-use.

CLOSING RECALL FLOW - QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT

START / CONCEPT: Qualifications, oath, tenure, salary and exit

|

v

EXACT TERMS: Article 124 · distinguished jurist · retirement at 65 · Article 125 · Article 124(7)

|

v

MECHANISM / ARGUMENT: Eligibility leads to presidential appointment and oath, followed by protected tenure until a constitutionally recognised exit.

|

v

CONSEQUENCE / CONTRAST: Security of service reduces political leverage while the practice bar limits later professional dependence.

|

v

UPSC TRAP / ANSWER-USE: There is no minimum appointment age, and Article 124(7) does not prohibit every post-retirement public office.

|

v

ANSWER-GRABBING FORMULATION: Qualifications, oath, tenure, salary protection and constitutional exit routes together create the judge's service-cycle firewall.

SESSION 6 - CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE

VISUAL FIRST

Tenure + charged expenditure + Article 121 + Article 129 + Article 50 -> decisional independence

This gateway locates constitutional safeguards of judicial independence before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial independence protects adjudication from political reward, pressure and retaliation.

Technical definition: Tenure, charged expenditure, protected service conditions, Article 121, contempt authority, appointment insulation and constitutional review form a cumulative independence architecture.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The constitutional safeguards of judicial independence remove several distinct levers of political reward, pressure and retaliation.

MUST-WRITE KEYWORDS

- security of tenure
- Article 121
- charged expenditure
- Article 129
- basic structure

How to use them: Frame the answer through security of tenure; define Article 121, connect charged expenditure with Article 129 to explain the mechanism, and use basic structure for the decisive comparison or qualification.

Visual 10 - Independence shield

CLOSING RECALL FLOW - CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE

START / CONCEPT: Constitutional safeguards of judicial independence

|

v

EXACT TERMS: security of tenure · Article 121 · charged expenditure · Article 129 · basic structure

|

v

MECHANISM / ARGUMENT: Each safeguard blocks a distinct pressure point in appointment, service, finance, criticism or enforcement.

|

v

CONSEQUENCE / CONTRAST: The combined shield enables rights enforcement, federal adjudication and review of elected power.

|

v

UPSC TRAP / ANSWER-USE: Independence is functional protection for adjudication, not personal immunity or freedom from accountability.

|

v

ANSWER-GRABBING FORMULATION: The constitutional safeguards of judicial independence remove several distinct levers of political reward, pressure and retaliation.

SESSION 7 - ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS

VISUAL FIRST

Open reasons -> recusal/disclosure -> in-house inquiry -> Article 124(4) removal

This gateway locates accountability, ethics and the in-house process before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial accountability concerns the standards and processes governing how judicial office is exercised.

Technical definition: Article 124(4) removal coexists with non-statutory in-house inquiry, the Restatement of Values of Judicial Life, disclosure practices and reasoned institutional administration.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The accountability problem lies in the wide gap between informal correction and the exceptional sanction of removal.

MUST-WRITE KEYWORDS

- Article 124(4)
- in-house procedure
- judicial ethics
- recusal
- asset disclosure

How to use them: Frame the answer through Article 124(4); define in-house procedure, connect judicial ethics with recusal to explain the mechanism, and use asset disclosure for the decisive comparison or qualification.

Visual 11 - Accountability ladder

Reasoned judgments + open courts + appeals/review
 |
 recusal norms + disclosure + professional ethics
 |
 Restatement of Values of Judicial Life, 1997
 |
 In-house procedure, adopted 1999
 |
 Article 124(4) removal for proved misconduct/incapacity

- [FACT] The **Restatement of Values of Judicial Life (1997)** and the **in-house procedure (1999)** are non-statutory accountability mechanisms.
- [FACT] The **Judicial Standards and Accountability Bill, 2010 lapsed**; it must not be cited as law.
- [ANALYSIS] Open hearings, published reasons, review, professional criticism and recusal practice provide everyday accountability.
- [LIMIT] The in-house process is not equivalent to a transparent statutory disciplinary code and does not create a full graded-sanction framework.

Visual 12 - Independence-accountability balance

If independence dominates without accountability	If accountability dominates without independence	Constitutional balance
Opacity, perceived favouritism, weak complaint redress	Executive pressure, partisan retaliation, timid adjudication	Transparent criteria, fair process, reasoned decisions and hard tenure protection

Mains line: Independence protects the decision; accountability legitimises the manner in which institutional power is exercised.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Judicial accountability must fill the space between ordinary criticism and the extreme removal remedy.
- **Named evidence:** The 1997 Restatement, 1999 in-house procedure, asset disclosure practice, recusal law and Article 124(4) form different accountability layers.
- **Analysis:** Reasoned and visible process protects legitimacy without handing case outcomes to the executive.
- **Qualification:** The in-house mechanism is non-statutory, recusals lack one codified national procedure and a lapsed Bill is not law.
- **Prelims trap:** Do not present the in-house procedure as a substitute for constitutional removal.
- **Mains use:** Use this paragraph to argue for graded, fair and independent accountability.
- **Mini recap:** Accountability concerns process and conduct; independence concerns freedom of decision.

Paragraph model: Judicial accountability must fill the space between ordinary criticism and the extreme removal remedy. The 1997 Restatement, 1999 in-house procedure, asset disclosure practice, recusal law and Article 124(4) form different accountability layers. Reasoned and visible process protects legitimacy without handing case outcomes to the executive. The in-house mechanism is non-statutory, recusals lack one codified national procedure and a lapsed Bill is not law.

CLOSING RECALL FLOW - ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS

START / CONCEPT: Accountability, ethics and the in-house process

|

v

EXACT TERMS: Article 124(4) · in-house procedure · judicial ethics · recusal · asset disclosure

|

v

MECHANISM / ARGUMENT: Complaints may receive internal scrutiny, while proved misbehaviour or incapacity alone can trigger the parliamentary removal route.

|

v

CONSEQUENCE / CONTRAST: Transparent appointments, recusals and complaint handling can improve legitimacy without executive control over decisions.

|

v

UPSC TRAP / ANSWER-USE: The 2010 Judicial Standards and Accountability Bill lapsed and must not be described as law.

|

v

ANSWER-GRABBING FORMULATION: The accountability problem lies in the wide gap between informal correction and the exceptional sanction of removal.

SESSION 8 - MASTER JURISDICTION MAP

VISUAL FIRST

131 original | 32 writ | 132-136 appellate | 137 review | 143 advisory

This gateway locates master jurisdiction map before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Jurisdiction identifies the constitutional doorway through which a matter reaches or returns to the Supreme Court.

Technical definition: Articles 32 and 131-137 create original, writ, appellate, special-leave and review routes, supplemented by advisory power under Article 143.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The master jurisdiction map begins by identifying the constitutional gateway before evaluating the Supreme Court's power or remedy.

MUST-WRITE KEYWORDS

- original jurisdiction
- writ jurisdiction
- appellate jurisdiction
- special leave
- advisory jurisdiction

How to use them: Frame the answer through original jurisdiction; define writ jurisdiction, connect appellate jurisdiction with special leave to explain the mechanism, and use advisory jurisdiction for the decisive comparison or qualification.

Visual 13 - Supreme Court jurisdiction wheel

VISUAL FIRST

Listed governments + legal-right dispute -> Article 131 exclusive original jurisdiction

This gateway locates original jurisdiction under article 131 before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 131 sends specified legal disputes between the Union and States directly to the Supreme Court.

Technical definition: Its exclusive original jurisdiction requires constitutionally listed governmental parties and a dispute involving the existence or extent of a legal right, subject to textual and Article 262 limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 131 makes the Court a federal umpire through a narrow legal gateway, not a general political forum.

MUST-WRITE KEYWORDS

- **Article 131**
- **federal dispute**
- **legal right**
- **exclusive original jurisdiction**
- **Article 262**

How to use them: Frame the answer through Article 131; define federal dispute, connect legal right with exclusive original jurisdiction to explain the mechanism, and use Article 262 for the decisive comparison or qualification.

Visual 14 - Article 131 gateway

Does the dispute involve a legal right?

yes

Are the parties constitutionally federal?

Union v State(s) / State v State

yes

Is it excluded by constitutional/statutory design?

pre-Constitution covenant exception / inter-State water route under Art 262

no

Supreme Court exclusive original jurisdiction

- [FACT] Article 131 covers disputes between the Government of India and one or more States, between the Union and State(s) on one side and other State(s) on the other, or between two or more States.
- [FACT] The dispute must involve the existence or extent of a **legal right**.
- [FACT] The jurisdiction is original and exclusive.
- [LIMIT] A private party cannot invoke Article 131 merely because a State is involved.
- [LIMIT] Purely political disagreement without a legal-right issue does not satisfy the Article.
- [FACT] Parliament may provide under Article 262 for exclusion of court jurisdiction over inter-State river-water disputes.
- [ANALYSIS] Article 131 makes the Court a federal umpire, but only for legal controversy, not political mediation.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 131 makes the Court a federal umpire through a narrow party-and-rights test.
- **Named evidence:** The Union-State and State-State combinations, the legal-right requirement, the treaty proviso and Article 262 define the gateway.
- **Analysis:** Direct apex adjudication prevents one constituent government from being forced into another's ordinary courts.

- **Qualification:** Political disagreement, a private party and excluded inter-State water adjudication do not become Article 131 disputes.
- **Prelims trap:** Original jurisdiction is not a general forum for every dispute involving government.
- **Mains use:** Use this paragraph to link federalism with jurisdictional restraint.
- **Mini recap:** Federal status opens the door only when a legal right is genuinely in dispute.

Paragraph model: Article 131 makes the Court a federal umpire through a narrow party-and-rights test. The Union-State and State-State combinations, the legal-right requirement, the treaty proviso and Article 262 define the gateway. Direct apex adjudication prevents one constituent government from being forced into another's ordinary courts. Political disagreement, a private party and excluded inter-State water adjudication do not become Article 131 disputes.

CLOSING RECALL FLOW - ORIGINAL JURISDICTION UNDER ARTICLE 131

START / CONCEPT: Original jurisdiction under Article 131

|

v

EXACT TERMS: Article 131 · federal dispute · legal right · exclusive original jurisdiction · Article 262

|

v

MECHANISM / ARGUMENT: An eligible intergovernmental dispute begins in the Supreme Court without passing through lower courts.

|

v

CONSEQUENCE / CONTRAST: Direct apex adjudication protects equality among governments and authoritative settlement of federal competence.

|

v

UPSC TRAP / ANSWER-USE: Private parties, abstract political disagreements and excluded water disputes do not automatically fit Article 131.

|

v

ANSWER-GRABBING FORMULATION: Article 131 makes the Court a federal umpire through a narrow legal gateway, not a general political forum.

SESSION 10 - ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON

VISUAL FIRST

Article 32: Fundamental Rights nationwide <-> Article 226: FRs + other legal rights territorially

This gateway locates article 32, the five writs and article 226 comparison before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 32 guarantees access to the Supreme Court for Fundamental Rights, while Article 226 gives High Courts a wider remedial purpose.

Technical definition: The five prerogative writs operate through distinct remedial conditions; Article 226 extends to Fundamental Rights and other legal rights with territorial-nexus limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The exam-safe comparison is guaranteed but subject-limited Article 32 versus wider-purpose and territorially grounded Article 226.

MUST-WRITE KEYWORDS

- **Article 32**
- **Article 226**
- **habeas corpus**
- **mandamus**
- **certiorari**

How to use them: Frame the answer through Article 32; define Article 226, connect habeas corpus with mandamus to explain the mechanism, and use certiorari for the decisive comparison or qualification.

Visual 15 - Select the writ from the defect

Illegal detention?	HABEAS CORPUS
Public duty not performed?	MANDAMUS
Lower court/tribunal about to exceed power?	PROHIBITION
Illegal order already made?	CERTIORARI
Public office unlawfully occupied?	QUO WARRANTO

Writ	Core purpose	High-yield boundary
Habeas corpus	Produce detained person and test legality	May operate against private detention
Mandamus	Command performance of public duty	Not ordinarily against private duty or President/Governor personally
Prohibition	Stop lower court/tribunal before jurisdictional wrong is completed	Preventive
Certiorari	Quash completed order for jurisdictional/legal/natural-justice error	Corrective
Quo warranto	Test lawful entitlement to substantive public office	Applicant need not show personal injury

Visual 16 - Article 32 versus Article 226

Dimension	Supreme Court: Article 32	High Court: Article 226
Purpose	[FACT] Enforcement of Fundamental Rights	[FACT] Fundamental Rights and any other purpose
Nature	[FACT] Remedy is itself a Fundamental Right	Constitutional and discretionary power
Reach	National	Territorial/cause-of-action based
Relative width	Narrower in purpose	Wider in purpose
Alternate remedy	Does not erase Article 32, but Court applies remedial discipline	Strong discretionary alternate-remedy rule

- [FACT] Dr B.R. Ambedkar called Article 32 the Constitution's "heart and soul".
- [FACT] Judicial review through Articles 32 and 226/227 forms part of the basic structure.
- [LIMIT] "Article 226 is wider" means wider **in purpose**, not unlimited territorial reach.
- [LIMIT] Article 32 is not a bypass for every legal grievance; a Fundamental Right injury must be shown.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 32 is stronger as a guaranteed remedy, while Article 226 is wider in subject matter.
- **Named evidence:** Both constitutional courts issue the five writs; Article 32 is itself a Fundamental Right and Article 226 extends to 'any other purpose'.
- **Analysis:** The dual design combines an apex guarantee with accessible State-level constitutional justice.
- **Qualification:** High Court discretion and territorial cause-of-action rules do not make Article 226 constitutionally inferior.
- **Prelims trap:** Do not say Article 32 is wider merely because the Supreme Court has national reach.
- **Mains use:** Use the nature-purpose-reach comparison rather than a single word such as 'wider'.
- **Mini recap:** Article 32 guarantees FR enforcement; Article 226 broadens public-law protection.

Paragraph model: Article 32 is stronger as a guaranteed remedy, while Article 226 is wider in subject matter. Both constitutional courts issue the five writs; Article 32 is itself a Fundamental Right and Article 226 extends to 'any other purpose'. The dual design combines an apex guarantee with accessible State-level constitutional justice. High Court discretion and territorial cause-of-action rules do not make Article 226 constitutionally inferior.

CLOSING RECALL FLOW - ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON

START / CONCEPT: Article 32, the five writs and Article 226 comparison

|
v

EXACT TERMS: Article 32 · Article 226 · habeas corpus · mandamus · certiorari

|
v

MECHANISM / ARGUMENT: The injury and stage of illegality determine both the forum and the appropriate writ.

|
v

CONSEQUENCE / CONTRAST: Constitutional remedies convert rights and public duties into enforceable judicial orders.

|
v

UPSC TRAP / ANSWER-USE: Wider purpose does not make a High Court hierarchically superior or give it unlimited territorial reach.

|
v

ANSWER-GRABBING FORMULATION: The exam-safe comparison is guaranteed but subject-limited Article 32 versus wider-purpose and territorially grounded Article 226.

SESSION 11 - APPELLATE JURISDICTION: ARTICLES 132-136

VISUAL FIRST

132 constitutional -> 133 civil -> 134 criminal -> 134A certificate -> 136 exceptional special leave

This gateway locates appellate jurisdiction: articles 132-136 before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Appellate jurisdiction allows the Supreme Court to review specified decisions of High Courts and other adjudicatory bodies.

Technical definition: Articles 132-134 create certified constitutional, civil and criminal appeals, while Article 136 confers extraordinary discretionary special leave except against Armed Forces courts or tribunals.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

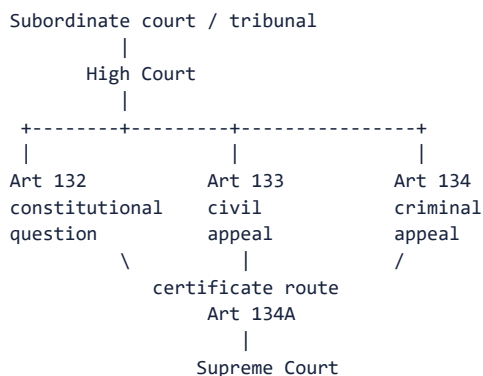
The ordinary appeal routes and Article 136 must be separated because only the latter is exceptional judicial discretion.

MUST-WRITE KEYWORDS

- Article 132
- Article 133
- Article 134
- Article 136
- special leave petition

How to use them: Frame the answer through Article 132; define Article 133, connect Article 134 with Article 136 to explain the mechanism, and use special leave petition for the decisive comparison or qualification.

Visual 17 - Appellate ladder



Residual exceptional doorway: Article 136 Special Leave

Article	Gateway	Core condition
132	Constitutional appeal	HC certificate involving substantial constitutional interpretation
133	Civil appeal	HC certificate: substantial question of law of general importance requiring SC decision
134	Criminal appeal	Specified constitutional cases and certificate route
134A	Certificate procedure	HC considers grant of certificate
136	Special Leave Petition	Discretionary leave from court/tribunal decisions, except Armed-Forces court/tribunal

- [FACT] Article 136 is **discretionary**, not a regular right of appeal.
- [FACT] It excludes judgments, determinations, sentences or orders of courts or tribunals constituted by or under a law relating to the Armed Forces.
- [ANALYSIS] SLP permits correction of grave injustice beyond ordinary appeal routes.
- [LIMIT] Treating SLP as a routine third appeal increases apex-court overload and dilutes its constitutional role.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The appellate structure combines certified routes with a residual discretionary safety valve.
- **Named evidence:** Articles 132-134A prescribe constitutional, civil and criminal channels; Article 136 permits special leave except from Armed-Forces courts or tribunals.
- **Analysis:** Certification screens regular appeals, while SLP enables correction of exceptional injustice across jurisdictions.
- **Qualification:** Article 136 is plenary but discretionary; it is not an automatic fourth appeal or a replacement for ordinary procedure.
- **Prelims trap:** Do not omit the express Armed-Forces exclusion.
- **Mains use:** Use this paragraph to explain breadth without claiming routine appellate entitlement.
- **Mini recap:** Certified appeal is structured; special leave is exceptional.

Paragraph model: The appellate structure combines certified routes with a residual discretionary safety valve. Articles 132-134A prescribe constitutional, civil and criminal channels; Article 136 permits special leave except from Armed-Forces courts or tribunals. Certification screens regular appeals, while SLP enables correction of exceptional injustice across jurisdictions. Article 136 is plenary but discretionary; it is not an automatic fourth appeal or a replacement for ordinary procedure.

CLOSING RECALL FLOW - APPELLATE JURISDICTION: ARTICLES 132-136

START / CONCEPT: Appellate jurisdiction: Articles 132-136

|

v

EXACT TERMS: Article 132 · Article 133 · Article 134 · Article 136 · special leave petition

|

v

MECHANISM / ARGUMENT: Certificates or statutory conditions open regular appeals; special leave requires the Court to exercise exceptional discretion.

|

v

CONSEQUENCE / CONTRAST: The structure combines legal correction and national uniformity without converting the Court into a routine fourth appellate forum.

|

v

UPSC TRAP / ANSWER-USE: Article 136 is not a right of appeal and excludes decisions of Armed Forces courts or tribunals.

|

v

ANSWER-GRABBING FORMULATION: The ordinary appeal routes and Article 136 must be separated because only the latter is exceptional judicial discretion.

SESSION 12 - ADVISORY JURISDICTION UNDER ARTICLE 143

VISUAL FIRST

President's reference -> Article 143 hearing -> advisory opinion -> political-constitutional consideration

This gateway locates advisory jurisdiction under article 143 before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 143 allows the President to seek the Supreme Court's opinion on specified questions.

Technical definition: Article 143(1) permits reference of a question of law or fact of public importance, while Article 143(2) covers disputes excluded by the Article 131 proviso and requires a report after hearing.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Advisory jurisdiction enables constitutional consultation without turning the opinion into ordinary binding adjudication.

MUST-WRITE KEYWORDS

- Article 143
- Presidential Reference
- advisory opinion
- public importance
- Article 143(2)

How to use them: Frame the answer through Article 143; define Presidential Reference, connect advisory opinion with public importance to explain the mechanism, and use Article 143(2) for the decisive comparison or qualification.

Visual 18 - Advisory route

President identifies question
of law/fact of public importance

|
Article 143(1)

|
Supreme Court may hear and report opinion

|
Opinion is advisory and non-binding

Pre-Constitution treaty/covenant class

|
Article 143(2)

|
Court shall report its opinion

- [FACT] Under Article 143(1), the President may refer a question of law or fact of public importance; the Court **may** report its opinion.
- [FACT] Under Article 143(2), the specified pre-Constitution treaty/covenant class is subject to a mandatory reporting formulation.
- [FACT] An advisory opinion is **not binding** in the manner of a judgment inter partes.
- [ANALYSIS] The jurisdiction enables preventive constitutional dialogue without manufacturing ordinary litigation.
- [LIMIT] Non-binding does not mean irrelevant; advisory reasoning can be highly authoritative.

Current assent control

Visual 19 - 2025 assent doctrine

State of Tamil Nadu v Governor, 8 Apr 2025
specific adjudicatory context

|
Presidential Reference opinion, 20 Nov 2025
Article 143; 2025 INSC 1333

|
no rigid court-made timelines
no deemed assent through Article 142

|
prolonged unexplained inaction still reviewable

- [CURRENT] The 20 November 2025 opinion rejects rigid timelines and deemed assent.
- [LIMIT] It is advisory and does not "overrule" the April 2025 judgment.
- [LIMIT] The holding is narrow. It does not generally curtail Article 142 in unrelated fields.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 143 creates constitutional advice, not private appellate litigation.
- **Named evidence:** Clause (1) permits a public-importance reference that the Court may answer; clause (2) covers the Article 131 proviso category and uses a mandatory hearing/report formula.
- **Analysis:** The reference enables institutional clarification before or outside ordinary adversarial finality.
- **Qualification:** The opinion is not binding like Article 141 law from an ordinary judgment and cannot be said to overrule a prior judgment.
- **Prelims trap:** Do not convert the 2025 assent opinion into a general curtailment of Article 142.
- **Mains use:** Use this paragraph for the nature, value and limits of advisory jurisdiction.
- **Mini recap:** Authoritative advice is constitutionally important but doctrinally distinct from a binding decree.

Paragraph model: Article 143 creates constitutional advice, not private appellate litigation. Clause (1) permits a public-importance reference that the Court may answer; clause (2) covers the Article 131 proviso category and uses a mandatory hearing/report formula. The reference enables institutional clarification before or outside ordinary adversarial finality. The opinion is not binding like Article 141 law from an ordinary judgment and cannot be said to overrule a prior judgment.

CLOSING RECALL FLOW - ADVISORY JURISDICTION UNDER ARTICLE 143

START / CONCEPT: Advisory jurisdiction under Article 143



EXACT TERMS: Article 143 · Presidential Reference · advisory opinion · public importance · Article 143(2)



MECHANISM / ARGUMENT: The President refers; the Court hears and reports according to the applicable clause.



CONSEQUENCE / CONTRAST: The opinion can clarify constitutional uncertainty before or outside conventional litigation.



UPSC TRAP / ANSWER-USE: An Article 143 opinion is advisory and must not be described as a binding decree or ordinary appeal.



ANSWER-GRABBING FORMULATION: Advisory jurisdiction enables constitutional consultation without turning the opinion into ordinary binding adjudication.

SESSION 13 - REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION

VISUAL FIRST

Judgment -> narrow Article 137 review -> dismissal -> exceptional curative screening

This gateway locates review under article 137 and the curative petition before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Review and curative petitions are narrow devices for correcting grave error after judgment.

Technical definition: Article 137 and Supreme Court rules govern review; Rupa Ashok Hurra (2002) created a still narrower curative jurisdiction after review to prevent gross miscarriage of justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Finality remains the rule even though the Court possesses two exceptional self-correction mechanisms.

MUST-WRITE KEYWORDS

- Article 137
- review petition
- curative petition
- Rupa Ashok Hurra (2002)
- finality

How to use them: Frame the answer through Article 137; define review petition, connect curative petition with Rupa Ashok Hurra (2002) to explain the mechanism, and use finality for the decisive comparison or qualification.

Visual 20 - Self-correction funnel

Supreme Court judgment
 |
 Review petition, Article 137
 error apparent / governing review grounds
 |
 review dismissed
 |
 Curative petition, *Rupa Ashok Hurra (2002)*
 rare natural-justice or judicial-bias failure
 |
 final exceptional correction, not another appeal

- [FACT] Article 137 authorises the Supreme Court to review its judgments or orders, subject to law and rules.
- [FACT] A review is narrow and is not a full rehearing merely because a party disagrees.
- [FACT] *Rupa Ashok Hurra (2002) v. Ashok Hurra (2002)* created the curative petition to prevent gross miscarriage of justice after review.
- [LIMIT] Curative jurisdiction is exceptional, especially for denial of natural justice or reasonable apprehension of bias; it is not a routine second review.
- [ANALYSIS] Finality preserves certainty, while review and curative jurisdiction prevent finality from becoming institutional infallibility.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Finality is preserved by making self-correction progressively narrower.
- **Named evidence:** Article 137 authorises review subject to law and rules; *Rupa Ashok Hurra (2002)* created curative relief for rare gross miscarriage after review.
- **Analysis:** The sequence corrects patent injustice without turning every final judgment into endless appeal.
- **Qualification:** A curative petition is not a constitutional appeal and requires the exceptional safeguards laid down by the Court.
- **Prelims trap:** Do not describe curative jurisdiction as a routine second review.
- **Mains use:** Use this paragraph in questions about finality versus justice.
- **Mini recap:** Correction survives finality, but only through narrowing gates.

Paragraph model: Finality is preserved by making self-correction progressively narrower. Article 137 authorises review subject to law and rules; *Rupa Ashok Hurra (2002)* created curative relief for rare gross miscarriage after review. The sequence corrects patent injustice without turning every final judgment into endless appeal. A curative petition is not a constitutional appeal and requires the exceptional safeguards laid down by the Court.

CLOSING RECALL FLOW - REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION

START / CONCEPT: Review under Article 137 and the curative petition
 |
 v
 EXACT TERMS: Article 137 · review petition · curative petition · *Rupa Ashok Hurra (2002)* · finality
 |
 v
 MECHANISM / ARGUMENT: A review tests prescribed error grounds; only after its dismissal can an exceptional curative plea satisfy additional safeguards.
 |
 v
 CONSEQUENCE / CONTRAST: Limited correction protects both justice in the individual case and systemic finality.
 |
 v
 UPSC TRAP / ANSWER-USE: A curative petition is not a second review or a routine additional appeal.
 |
 v
 ANSWER-GRABBING FORMULATION: Finality remains the rule even though the Court possesses two exceptional self-correction mechanisms.

SESSION 14 - COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129

VISUAL FIRST

Article 129 court of record -> authoritative records + contempt power -> fair-criticism boundary

This gateway locates court of record and contempt under article 129 before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A court of record preserves authoritative judicial acts and may punish contempt that obstructs justice.

Technical definition: Article 129 constitutionalises record status and contempt power, while the Contempt of Courts Act, 1971 regulates civil and criminal contempt without exhausting the constitutional source.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Contempt protects the administration of justice, not judges from every form of criticism.

MUST-WRITE KEYWORDS

- Article 129
- court of record
- civil contempt
- criminal contempt
- fair criticism

How to use them: Frame the answer through Article 129; define court of record, connect civil contempt with criminal contempt to explain the mechanism, and use fair criticism for the decisive comparison or qualification.

Visual 21 - Record and contempt

Court-of-record function	Meaning	Constitutional purpose
Authoritative record	Proceedings and acts retained as enduring record	Institutional memory and legal certainty
Precedential authority	Decisions guide and bind under Article 141	Uniformity
Contempt power	Punishes interference with justice	Protects adjudication and compliance

- [FACT] Article 129 declares the Supreme Court a court of record with power to punish for contempt of itself.
- [FACT] The Contempt of Courts Act, 1971 distinguishes civil and criminal contempt and regulates procedure.
- [FACT] Truth may be permitted as a defence when bona fide and in the public interest.
- [FACT] The statutory framework does **not cut down the constitutional contempt power**.
- [LIMIT] Contempt protects administration of justice, not judicial immunity from fair criticism.
- [ANALYSIS] The constitutional balance is between effective courts and democratic freedom to scrutinise institutions.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Contempt protects the administration of justice, not judicial reputation from all criticism.
- **Named evidence:** Article 129 is the constitutional source; the Contempt of Courts Act, 1971 regulates civil and criminal contempt and recognises bounded defences.
- **Analysis:** Enforcement authority is necessary because courts lack their own purse or executive machinery.
- **Qualification:** Statute cannot extinguish the constitutional power, but free expression, truth, bona fides and proportionality discipline its use.
- **Prelims trap:** Sharp criticism is not automatically criminal contempt.
- **Mains use:** Use this paragraph to balance institutional authority with democratic scrutiny.

- **Mini recap:** Protect adjudication from obstruction without insulating judges from reasoned criticism.

Paragraph model: Contempt protects the administration of justice, not judicial reputation from all criticism. Article 129 is the constitutional source; the Contempt of Courts Act, 1971 regulates civil and criminal contempt and recognises bounded defences. Enforcement authority is necessary because courts lack their own purse or executive machinery. Statute cannot extinguish the constitutional power, but free expression, truth, bona fides and proportionality discipline its use.

CLOSING RECALL FLOW - COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129

START / CONCEPT: Court of record and contempt under Article 129

|

v

EXACT TERMS: Article 129 · court of record · civil contempt · criminal contempt · fair criticism

|

v

MECHANISM / ARGUMENT: The Court distinguishes wilful disobedience from conduct substantially interfering with justice and applies procedural safeguards.

|

v

CONSEQUENCE / CONTRAST: The power supports compliance and public confidence but must coexist with Article 19(1)(a).

|

v

UPSC TRAP / ANSWER-USE: Fair criticism is not contempt, and the statutory scheme does not create the entire constitutional power.

|

v

ANSWER-GRABBING FORMULATION: Contempt protects the administration of justice, not judges from every form of criticism.

SESSION 15 - ARTICLES 141, 142, 144 AND 145

VISUAL FIRST

141 declares binding law -> 142 completes justice -> 144 secures aid -> 145 regulates procedure

This gateway locates articles 141, 142, 144 and 145 before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: These provisions connect precedent, complete justice, institutional assistance and Supreme Court procedure.

Technical definition: Article 141 binds all courts to law declared; Article 142 enables complete justice in a cause; Article 144 requires authorities to act in aid; Article 145 governs rules and constitutional benches.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The four Articles form an authority-to-remedy-to-implementation chain but confer different powers.

MUST-WRITE KEYWORDS

- Article 141
- Article 142
- Article 144
- Article 145
- complete justice

How to use them: Frame the answer through Article 141; define Article 142, connect Article 144 with Article 145 to explain the mechanism, and use complete justice for the decisive comparison or qualification.

Visual 22 - Authority chain

law declared binds all courts

complete-justice order in cause before Court

all civil and judicial authorities act in aid

Court frames rules; bench and procedure discipline

- **Named evidence:** Article 141 binds courts through the ratio; Article 142 operates in a pending cause; Article 144 requires aid; Article 145 authorises rules and Constitution Benches.
- **Analysis:** Together they connect authoritative interpretation to executable relief and institutional procedure.
- **Qualification:** A.R. Antulay, Prem Chand Garg and Supreme Court Bar Association reject using complete justice to defeat rights, substantive law or jurisdictional fairness.
- **Prelims trap:** Article 142 is supplementary, not a free-standing legislative power.
- **Mains use:** Use this paragraph whenever 'complete justice' is evaluated.
- **Mini recap:** Precedent declares; complete justice remedies; authorities aid; rules regularise.

Paragraph model: Articles 141, 142, 144 and 145 convert judgments into doctrine, remedy, implementation and orderly process. Article 141 binds courts through the ratio; Article 142 operates in a pending cause; Article 144 requires aid; Article 145 authorises rules and Constitution Benches. Together they connect authoritative interpretation to executable relief and institutional procedure. A.R. Antulay, Prem Chand Garg and Supreme Court Bar Association reject using complete justice to defeat rights, substantive law or jurisdictional fairness.

CLOSING RECALL FLOW - ARTICLES 141, 142, 144 AND 145

START / CONCEPT: Articles 141, 142, 144 and 145

|

v

EXACT TERMS: Article 141 · Article 142 · Article 144 · Article 145 · complete justice

|

v

MECHANISM / ARGUMENT: Binding doctrine guides courts, tailored relief resolves the cause, public authorities assist execution and rules structure adjudication.

|

v

CONSEQUENCE / CONTRAST: Together they make apex judgments nationally authoritative and operationally effective.

|

v

UPSC TRAP / ANSWER-USE: Article 142 cannot violate Fundamental Rights or supplant substantive statutory and constitutional limits.

|

v

ANSWER-GRABBING FORMULATION: The four Articles form an authority-to-remedy-to-implementation chain but confer different powers.

SESSION 16 - ACTING, AD HOC AND RETIRED JUDGES

VISUAL FIRST

126 acting CJI | 127 ad hoc judge | 128 retired judge sitting -> separate triggers and consents

This gateway locates acting, ad hoc and retired judges before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Acting, ad hoc and retired judges are three distinct temporary mechanisms for Supreme Court leadership or bench capacity.

Technical definition: Articles 126, 127 and 128 separately govern an acting CJI, ad hoc High Court judges and requested service by retired judges or qualified former High Court judges.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Acting, ad hoc and retired judges must be separated by trigger, appointing or requesting authority, consent and function.

MUST-WRITE KEYWORDS

- Article 126
- Article 127
- Article 128

- acting CJI
- retired judge

How to use them: Frame the answer through Article 126; define Article 127, connect Article 128 with acting CJI to explain the mechanism, and use retired judge for the decisive comparison or qualification.

Visual 24 - Continuity toolkit

Provision	Device	Trigger and control
Article 126	Acting CJI	Office vacant or CJI unable to perform; President appoints another SC judge
Article 127	Ad hoc judge	Lack of quorum; CJI with President's prior consent and consultation requests qualified HC judge
Article 128	Retired judge sits	CJI with President's prior consent requests retired SC judge or qualified retired HC judge; person's consent needed
Article 124(7)	Post-retirement practice bar	Former SC judge cannot plead or act before any court or authority in India

- [FACT] An Article 128 judge sits and acts with the relevant powers while requested but is not thereby treated as a permanently serving judge.
- [ANALYSIS] Retired-judge deployment can add expertise and short-term capacity.
- [LIMIT] It is a stop-gap, not a substitute for timely regular appointments.
- [FACT] Article 124(7) bars pleading or acting; it does not textually bar every public appointment, arbitration or commission role.
- [ANALYSIS] Post-retirement appointments raise a perception-of-independence issue even where legally permissible. Reform options include cooling-off rules, transparent selection and narrower eligibility.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Temporary judicial-capacity provisions are tailored continuity devices, not alternative permanent appointments.
- **Named evidence:** Articles 126, 127 and 128 separately govern an acting CJI, an ad hoc High Court judge and an eligible retired judge sitting in the Supreme Court.
- **Analysis:** Each mechanism addresses a different incapacity, quorum or expertise need while preserving consent safeguards.
- **Qualification:** Article 128 sitting does not repeal Article 124(7)'s post-retirement practice bar.
- **Prelims trap:** Do not merge ad hoc judges with retired judges or omit required consent.
- **Mains use:** Use this paragraph for close-option questions on temporary judicial service.
- **Mini recap:** Continuity devices differ by trigger, person and consent.

Paragraph model: Temporary judicial-capacity provisions are tailored continuity devices, not alternative permanent appointments. Articles 126, 127 and 128 separately govern an acting CJI, an ad hoc High Court judge and an eligible retired judge sitting in the Supreme Court. Each mechanism addresses a different incapacity, quorum or expertise need while preserving consent safeguards. Article 128 sitting does not repeal Article 124(7)'s post-retirement practice bar.

CLOSING RECALL FLOW - ACTING, AD HOC AND RETIRED JUDGES

START / CONCEPT: Acting, ad hoc and retired judges

|

v

EXACT TERMS: Article 126 · Article 127 · Article 128 · acting CJI · retired judge

|

v

MECHANISM / ARGUMENT: A vacancy or quorum/capacity need activates the relevant constitutionally specified route and consent process.

|

v

CONSEQUENCE / CONTRAST: These devices preserve institutional continuity without making a permanent appointment.

|

v

UPSC TRAP / ANSWER-USE: Article 128 sitting does not cancel the Article 124(7) bar on post-retirement pleading or acting.

|

v

ANSWER-GRABBING FORMULATION: Acting, ad hoc and retired judges must be separated by trigger, appointing or requesting authority, consent and function.

SESSION 17 - JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE

VISUAL FIRST

Constitutional supremacy -> review of law/action/amendment -> invalidity only on a legal ground

This gateway locates judicial review, basic structure and the ninth schedule before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial review tests public power against the Constitution, including protected constitutional fundamentals.

Technical definition: Articles 13, 32 and the jurisdictional scheme support review; Kesavananda Bharati (1973) limits amendment power and I.R. Coelho (2007) subjects post-24 April 1973 Ninth Schedule insertions to basic-structure impact review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial review preserves constitutional supremacy by reviewing laws, executive action and even the constitutional effect of amendments.

MUST-WRITE KEYWORDS

- judicial review
- basic structure
- Kesavananda Bharati (1973)
- Ninth Schedule
- I.R. Coelho (2007)

How to use them: Frame the answer through judicial review; define basic structure, connect Kesavananda Bharati (1973) with Ninth Schedule to explain the mechanism, and use I.R. Coelho (2007) for the decisive comparison or qualification.

Visual 25 - Judicial-review layers

```

competence + Fundamental Rights + other constitutional limits
|
constitutional amendment
|
Article 368 procedure + basic-structure limit
|
Ninth Schedule insertion after 24 April 1973
|
rights impact -> underlying basic feature -> damage test

```

- ### Visual 26 - Ninth Schedule test

```

Law placed in Ninth Schedule
|
Was insertion after 24 April 1973?
|
no                yes
historical protection    review is open
|
Does rights impact damage an underlying basic feature?
|
no                yes
protection survives    insertion/law may fail

```

- ## HOW TO WRITE THE ANSWER PARAGRAPH

- Paragraph model:** Judicial review preserves constitutional supremacy without making courts supreme over every policy choice. Kesavananda Bharati (1973) limits amendment power; Minerva Mills (1980) protects limited government; I.R. Coelho (2007) subjects post-24 April 1973 Ninth Schedule insertions to impact review. The Court polices constitutional competence, rights and basic structure rather than substituting its preferred policy. Reviewability is not automatic invalidity, and basic structure is not an exhaustive judicial veto over ordinary politics.

CLOSING RECALL FLOW - JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE

START / CONCEPT: Judicial review, basic structure and the Ninth Schedule

|

v

EXACT TERMS: judicial review · basic structure · Kesavananda Bharati (1973) · Ninth Schedule · I.R. Coelho (2007)

|

v

MECHANISM / ARGUMENT: The Court identifies the governing constitutional limit, tests the challenged measure and grants an appropriate remedy.

|

v

CONSEQUENCE / CONTRAST: Review prevents ordinary or constituent power from converting constitutional supremacy into political supremacy.

|

v

UPSC TRAP / ANSWER-USE: Reviewability does not mean automatic invalidity; the controlling test must still be satisfied.

|

v

ANSWER-GRABBING FORMULATION: Judicial review preserves constitutional supremacy by reviewing laws, executive action and even the constitutional effect of amendments.

SESSION 18 - TRIBUNALS AND THE BASIC-STRUCTURE FLOOR

VISUAL FIRST

Specialised tribunal -> first-instance expertise -> High Court review -> Supreme Court constitutional control

This gateway locates tribunals and the basic-structure floor before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Tribunals provide specialised adjudication but remain subject to constitutional-court review.

Technical definition: L. Chandra Kumar (1997) held that High Court review under Articles 226/227 and Supreme Court review under Article 32 are basic-structure features that tribunals cannot wholly replace.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunals may add specialised adjudication, but the Basic Structure floor preserves review by constitutional courts.

MUST-WRITE KEYWORDS

- tribunals
- L. Chandra Kumar (1997)
- Articles 226/227
- Article 32
- basic structure

How to use them: Frame the answer through tribunals; define L. Chandra Kumar (1997), connect Articles 226/227 with Article 32 to explain the mechanism, and use basic structure for the decisive comparison or qualification.

Visual 27 - Tribunal review chain

Specialised tribunal
 expertise + flexible procedure
 |
 first-instance adjudication
 |
 High Court Division Bench
 Articles 226/227 review
 |
 Supreme Court
 appeal / SLP where legally available

- [FACT] Articles 323A and 323B enable specialised tribunals in different fields.
- [FACT] *L. Chandra Kumar (1997) v. Union of India (1997)* held that review under Articles 226/227 and 32 is part of the basic structure; tribunal decisions remain reviewable by a High Court Division Bench.
- [ANALYSIS] Tribunals may supplement courts but cannot supplant constitutional judicial review.
- [FACT] The *Madras Bar Association* line polices executive influence, tenure and qualifications where tribunals take over judicial work.
- [LIMIT] Tribunalisation is not unconstitutional by itself. The constitutional question is whether design preserves independence and review.
- [ANALYSIS] The efficiency test is institutional: shifting cases without judges, members, staff and digital records shifts delay rather than cures it.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Tribunals may supplement adjudication but cannot replace the constitutional-court structure.
- **Named evidence:** *L. Chandra Kumar (1997)* held that Articles 226/227 and 32 review form part of the basic structure and tribunal decisions remain reviewable.
- **Analysis:** Specialisation and speed are legitimate only when independence, competence and constitutional supervision survive.
- **Qualification:** The ruling does not make every tribunal unconstitutional or every order directly appealable to the Supreme Court.
- **Prelims trap:** Do not confuse tribunal substitution with tribunal supplementation.
- **Mains use:** Use this paragraph to connect tribunal reform with separation of powers and access.
- **Mini recap:** Expert forums may decide first; constitutional courts retain the final legality floor.

Paragraph model: Tribunals may supplement adjudication but cannot replace the constitutional-court structure. *L. Chandra Kumar (1997)* held that Articles 226/227 and 32 review form part of the basic structure and tribunal decisions remain reviewable. Specialisation and speed are legitimate only when independence, competence and constitutional supervision survive. The ruling does not make every tribunal unconstitutional or every order directly appealable to the Supreme Court.

CLOSING RECALL FLOW - TRIBUNALS AND THE BASIC-STRUCTURE FLOOR

START / CONCEPT: Tribunals and the basic-structure floor
 |
 v
 EXACT TERMS: tribunals · *L. Chandra Kumar (1997)* · Articles 226/227 · Article 32 · basic structure
 |
 v
 MECHANISM / ARGUMENT: Tribunals decide specialised disputes first, followed by constitutionally preserved High Court scrutiny.
 |
 v
 CONSEQUENCE / CONTRAST: The model combines expertise and access with a judicial-review safety floor.
 |
 v
 UPSC TRAP / ANSWER-USE: Tribunals are not direct substitutes for High Courts in the constitutional hierarchy.
 |
 v
 ANSWER-GRABBING FORMULATION: Tribunals may add specialised adjudication, but the Basic Structure floor preserves review by constitutional courts.

SESSION 19 - PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS

VISUAL FIRST

Relaxed standing -> epistolary access -> representative litigation -> continuing mandamus

This gateway locates pil, locus standi, epistolary jurisdiction and continuing mandamus before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Public interest litigation relaxes standing and procedure so vulnerable groups can obtain constitutional remedies.

Technical definition: PIL developed through representative standing, letter petitions and continuing mandamus under Articles 32 and 226, while retaining bona fides, legal injury and institutional limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

PIL changed who may approach constitutional courts and how compliance may be supervised after judgment.

MUST-WRITE KEYWORDS

- public interest litigation
- locus standi
- epistolary jurisdiction
- continuing mandamus
- Hussainara Khatoon (1979)

How to use them: Frame the answer through public interest litigation; define locus standi, connect epistolary jurisdiction with continuing mandamus to explain the mechanism, and use Hussainara Khatoon (1979) for the decisive comparison or qualification.

Visual 28 - Access transformation

Traditional standing
personally injured litigant
|
post-Emergency rights expansion
|
relaxed locus standi
public-spirited petitioner for disadvantaged groups
|
epistolary jurisdiction
letter treated as petition in appropriate case
|
continuing mandamus
case retained to monitor compliance

- [FACT] Public Interest Litigation developed in India in the late 1970s and early 1980s, associated especially with Justices V.R. Krishna Iyer and P.N. Bhagwati.
- [FACT] *Hussainara Khatoon (1979)* connected undertrial detention with speedy trial and access to justice.
- [FACT] *S.P. Gupta (1981)* is a leading relaxation-of-locus-standi authority.
- [FACT] Epistolary jurisdiction enabled letters concerning serious rights deprivation to be treated as petitions.
- [FACT] Continuing mandamus keeps proceedings open and seeks periodic compliance; *Vineet Narain (1998)* is a standard governance example.
- [ANALYSIS] PIL changed both the door and the remedy: more persons could approach the Court, and the Court could supervise implementation over time.

Visual 29 - PIL legitimacy test

Question	Legitimate PIL signal	Overreach/abuse signal
Who is affected?	Disadvantaged group unable to litigate	Private rivalry dressed as public cause
What right?	Constitutional/legal injury	Abstract political disagreement
What remedy?	Rights-enforcing and administrable	Open-ended policy management
What evidence?	Verified facts and affected voices	Publicity-oriented allegations
What duration?	Compliance monitoring tied to judgment	Permanent judicial administration

- [LIMIT] PIL is not a licence to bypass evidence, standing discipline or separation of powers.
- [ANALYSIS] Frivolous "publicity-interest" litigation consumes scarce judicial time and can displace ordinary litigants.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** PIL changed who may approach constitutional courts and how compliance may be supervised.
- **Named evidence:** Hussainara Khatoon (1979) advanced speedy trial; S.P. Gupta (1981) widened representative standing; Vineet Narain (1998) illustrates continuing mandamus.
- **Analysis:** The model converts inaccessible group injury into enforceable public-law claims and sustained compliance.
- **Qualification:** Standing is relaxed for bona fide public injury, not erased for publicity, private rivalry or abstract governance.
- **Prelims trap:** PIL is a procedural access innovation, not a licence to bypass evidence and institutional competence.
- **Mains use:** Use this paragraph to explain both democratisation and docket/overreach risks.
- **Mini recap:** PIL opens the courthouse; judicial discipline determines whether it remains justice.

Paragraph model: PIL changed who may approach constitutional courts and how compliance may be supervised. Hussainara Khatoon (1979) advanced speedy trial; S.P. Gupta (1981) widened representative standing; Vineet Narain (1998) illustrates continuing mandamus. The model converts inaccessible group injury into enforceable public-law claims and sustained compliance. Standing is relaxed for bona fide public injury, not erased for publicity, private rivalry or abstract governance.

CLOSING RECALL FLOW - PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS

START / CONCEPT: PIL, locus standi, epistolary jurisdiction and continuing mandamus

|
v

EXACT TERMS: public interest litigation · locus standi · epistolary jurisdiction · continuing mandamus · Hussainara Khatoon (1979)

|
v

MECHANISM / ARGUMENT: Courts admit representative claims, identify collective rights violations and may monitor implementation where one-time relief is inadequate.

|
v

CONSEQUENCE / CONTRAST: The device expands access and converts systemic rights into enforceable obligations.

|
v

UPSC TRAP / ANSWER-USE: Relaxed standing is not erased standing, and continuing supervision must not become indefinite administration.

|
v

ANSWER-GRABBING FORMULATION: PIL changed who may approach constitutional courts and how compliance may be supervised after judgment.

SESSION 20 - JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION

VISUAL FIRST

Rights violation + legal vacuum -> interim judicial norm -> legislative replacement

This gateway locates judicial activism, restraint and judicial legislation before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Activism and restraint describe competing judicial approaches to remedying illegality and respecting institutional boundaries.

Technical definition: Judicial legislation is defensible as rights-based, temporary gap-filling under Articles 32, 141 and 142, but separation of powers limits permanent substitution for elected lawmaking.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial activism, restraint and judicial legislation are evaluated by legal anchor, remedial necessity and respect for institutional boundaries.

MUST-WRITE KEYWORDS

- judicial activism
- judicial restraint
- judicial legislation
- Vishaka (1997)
- separation of powers

How to use them: Frame the answer through judicial activism; define judicial restraint, connect judicial legislation with Vishaka (1997) to explain the mechanism, and use separation of powers for the decisive comparison or qualification.

Visual 30 - Institutional spectrum

RESTRAINT	REVIEW	ACTIVISM	GOVERNANCE
defence	legality testing	strong remedies	policy administration
presumption of constitutionality	invalidate unlawful action	fill rights-linked vacuum temporarily	risk of replacing elected branches

- [ANALYSIS] Judicial activism is assertive interpretation or remedy in defence of constitutional values; judicial restraint emphasises institutional competence and democratic choice.
- [FACT] Indian separation of powers is functional rather than absolutely watertight.
- [LIMIT] Neither activism nor restraint is inherently virtuous. The decisive questions are constitutional hook, evidence, remedy fit and institutional competence.

Judicial legislation

Visual 31 - The Vishaka (1997) bridge

Rights injury + legislative vacuum
|
Vishaka (1997) v State of Rajasthan, 1997
|
interim binding guidelines under Article 141
"until legislation is enacted"
|
2013 workplace sexual-harassment statute
|
statutory framework supersedes interim court norms

- [FACT] *Vishaka (1997)* created interim workplace-sexual-harassment norms in a legislative vacuum, drawing on constitutional rights and CEDAW.
- [ANALYSIS] This is judicial legislation at its most defensible: temporary, rights-protective and self-limiting.

- [LIMIT] Courts cannot become permanent legislatures. Under *SCBA* (1998), Article 142 supplements rather than supplants substantive law.
- [ANALYSIS] A court crosses from adjudication toward governance when it designs policy without a constitutional hook, lacks administrable standards or continues management after lawful institutions can act.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Judicial legislation is most defensible as temporary rights-protecting gap filling.
- **Named evidence:** *Vishaka* (1997) used constitutional guarantees and CEDAW to prescribe workplace safeguards until Parliament enacted the 2013 statute.
- **Analysis:** Article 141 allowed an enforceable bridge where legislative absence exposed rights to continuing harm.
- **Qualification:** The bridge must yield to valid legislation and cannot become permanent judicial administration.
- **Prelims trap:** Do not treat every creative interpretation as legislation or every policy order as justified activism.
- **Mains use:** Use the right-vacuum-necessity-temporariness test.
- **Mini recap:** Courts may bridge a rights-threatening vacuum, not occupy the legislature.

Paragraph model: Judicial legislation is most defensible as temporary rights-protecting gap filling. *Vishaka* (1997) used constitutional guarantees and CEDAW to prescribe workplace safeguards until Parliament enacted the 2013 statute. Article 141 allowed an enforceable bridge where legislative absence exposed rights to continuing harm. The bridge must yield to valid legislation and cannot become permanent judicial administration.

CLOSING RECALL FLOW - JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION

START / CONCEPT: Judicial activism, restraint and judicial legislation

|

v

EXACT TERMS: judicial activism · judicial restraint · judicial legislation · *Vishaka* (1997) · separation of powers

|

v

MECHANISM / ARGUMENT: A rights violation and legal vacuum may justify interim norms until competent legislation occupies the field.

|

v

CONSEQUENCE / CONTRAST: Calibrated intervention can prevent remedial failure while preserving democratic responsibility.

|

v

UPSC TRAP / ANSWER-USE: *Vishaka* (1997)-style gap-filling does not authorise courts to govern policy whenever they prefer a different choice.

|

v

ANSWER-GRABBING FORMULATION: Judicial activism, restraint and judicial legislation are evaluated by legal anchor, remedial necessity and respect for institutional boundaries.

SESSION 21 - ENVIRONMENTAL CONSTITUTIONALISM

VISUAL FIRST

Article 21 + 48A + 51A(g) -> liability/principles -> continuing supervision -> regulator implementation

This gateway locates environmental constitutionalism before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Environmental constitutionalism treats ecological protection as part of enforceable life, duty and governance commitments.

Technical definition: The Supreme Court connected Article 21 with Articles 48A and 51A(g), developing absolute liability, precaution, polluter-pays, public trust and continuing remedies.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Environmental cases show how judicial review can translate constitutional values into doctrine while still depending on regulators.

MUST-WRITE KEYWORDS

- Article 21
- Article 48A
- Article 51A(g)
- polluter pays
- public trust doctrine

How to use them: Frame the answer through Article 21; define Article 48A, connect Article 51A(g) with polluter pays to explain the mechanism, and use public trust doctrine for the decisive comparison or qualification.

Visual 32 - Constitutionalisation chain

Article 21: life and dignity
+
Article 48A: State environmental duty
+
Article 51A(g): citizen duty
|
judicial interpretation
|
pollution-free environment + liability + preventive principles
|
regulatory enforcement by executive, CPCB/SPCBs, NGT and courts

Case	Named proposition	Qualification
<i>Subhash Kumar</i> (1991)	[FACT] Article 21 includes pollution-free environment	Not a substitute for every statutory route
<i>M.C. Mehta - Oleum Gas Leak</i> (1987)	[FACT] Absolute liability for hazardous enterprises	Distinct from English strict liability
<i>Vellore Citizens</i> (1996)	[FACT] Precautionary principle, polluter pays and sustainable development	Principles require contextual application
<i>M.C. Mehta v. Kamal Nath</i> (1997)	[FACT] Public-trust doctrine	State holds key resources in trust
<i>T.N. Godavarman</i> (1996 onward)	[FACT] Broad forest approach and continuing mandamus	Standard example of long judicial supervision

- [ANALYSIS] The Court constitutionalised environmental problems by reading ecological security into enforceable life and dignity rather than leaving it only in Directive Principles.
- [LIMIT] Courts can compel legality and supervise failure, but cannot replace scientific regulators, local consultation and continuous administration.
- [FACT] Appeals from specified NGT decisions lie to the Supreme Court under the NGT Act.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Environmental constitutionalism transformed ecological injury into an enforceable life-and-governance claim.
- **Named evidence:** M.C. Mehta (Oleum Gas), Vellore Citizens, M.C. Mehta v Kamal Nath and T.N. Godavarman supply absolute liability, precaution, polluter pays, public trust and continuing mandamus.
- **Analysis:** Constitutionalisation raises regulatory floors and gives affected communities a rights route.
- **Qualification:** Courts can catalyse compliance but cannot replace CPCB, State Boards, expert appraisal or the NGT.
- **Prelims trap:** Do not confuse absolute liability with English strict liability.
- **Mains use:** Use cases as propositions, not as an unexplained catalogue.
- **Mini recap:** The Court constitutionalised environmental protection while implementation remains institutionally shared.

Paragraph model: Environmental constitutionalism transformed ecological injury into an enforceable life-and-governance claim. M.C. Mehta (Oleum Gas), Vellore Citizens, M.C. Mehta v Kamal Nath and T.N. Godavarman supply absolute liability, precaution, polluter pays, public trust and continuing mandamus. Constitutionalisation raises regulatory floors and gives affected communities a rights route. Courts can catalyse compliance but cannot replace CPCB, State Boards, expert appraisal or the NGT.

CLOSING RECALL FLOW - ENVIRONMENTAL CONSTITUTIONALISM

START / CONCEPT: Environmental constitutionalism

|
v

EXACT TERMS: Article 21 · Article 48A · Article 51A(g) · polluter pays · public trust doctrine

|
v

MECHANISM / ARGUMENT: Courts identify environmental injury, apply constitutional and statutory principles and direct or monitor lawful remediation.

|
v

CONSEQUENCE / CONTRAST: The doctrine strengthened preventive and restorative accountability for ecological harm.

|
v

UPSC TRAP / ANSWER-USE: Constitutionalisation does not make courts technical regulators or eliminate statutory institutions such as the NGT and pollution boards.

|
v

ANSWER-GRABBING FORMULATION: Environmental cases show how judicial review can translate constitutional values into doctrine while still depending on regulators.

SESSION 22 - WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY

VISUAL FIRST

Equality pipeline -> Bar/bench opportunity -> transparent selection -> representative legitimacy

This gateway locates women and diversity in the higher judiciary before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial diversity concerns fair access to appointment and the representative legitimacy of constitutional courts.

Technical definition: Equality under Articles 14-16 informs diversity-aware pipeline and appointment reform without creating an express constitutional reservation for higher-court judges.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Representation is an institutional legitimacy question as well as a question of individual appointment.

MUST-WRITE KEYWORDS

- **judicial diversity**
- **Articles 14-16**
- **Fathima Beevi**
- **appointment pipeline**
- **institutional legitimacy**

How to use them: Frame the answer through judicial diversity; define Articles 14-16, connect Fathima Beevi with appointment pipeline to explain the mechanism, and use institutional legitimacy for the decisive comparison or qualification.

Visual 33 - Representation pipeline

Legal education
|
Bar entry and retention
|
briefing opportunities / designation / leadership
|
High Court appointment pool
|
Supreme Court collegium consideration
|
bench diversity + institutional legitimacy

- [FACT] Justice M. Fathima Beevi became the first woman judge of the Supreme Court in **1989**.
- [ANALYSIS] Greater representation is supported by equality, legitimacy, role-model effects and a wider range of lived experience in adjudication.
- [LIMIT] Diversity is not a claim that identity predetermines judgments or replaces merit.
- [ANALYSIS] The "merit versus diversity" binary is false where opportunity, briefing patterns, senior designation and appointment criteria shape who becomes visible as meritorious.
- [CURRENT] This package does not freeze a current number or percentage of women judges.

Visual 34 - Reform without tokenism

Pipeline problem	Institutional response
Attrition and caregiving barriers	Fair workplace conditions, predictable listing and anti-harassment enforcement
Unequal professional visibility	Transparent briefing, designation and evaluation standards
Opaque selection	Published diversity-aware criteria and reasoned resolutions
Narrow feeder pool	Consider capable Bar candidates alongside senior judicial service
Symbolic appointment	Retention, leadership and fair allocation of work

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Judicial diversity concerns both equal opportunity and the legitimacy of constitutional interpretation.
- **Named evidence:** Articles 14-16 and Justice M. Fathima Beevi's 1989 appointment frame the equality and historical-representation issue.
- **Analysis:** A wider professional pipeline can enrich deliberation, public confidence and sensitivity to lived barriers.
- **Qualification:** Merit is not a self-defining neutral filter, but diversity must not be reduced to unsupported live percentages or token appointments.
- **Prelims trap:** Date-stamp every current representation figure or omit it.
- **Mains use:** Use this paragraph in gender and institutional-legitimacy questions.
- **Mini recap:** Diversity strengthens legitimacy when selection remains transparent, fair and professionally rigorous.

Paragraph model: Judicial diversity concerns both equal opportunity and the legitimacy of constitutional interpretation. Articles 14-16 and Justice M. Fathima Beevi's 1989 appointment frame the equality and historical-representation issue. A wider professional pipeline can enrich deliberation, public confidence and sensitivity to lived barriers. Merit is not a self-defining neutral filter, but diversity must not be reduced to unsupported live percentages or token appointments.

CLOSING RECALL FLOW - WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY

START / CONCEPT: Women and diversity in the higher judiciary

|

v

EXACT TERMS: judicial diversity · Articles 14-16 · Fathima Beevi · appointment pipeline · institutional legitimacy

|

v

MECHANISM / ARGUMENT: Professional opportunity, designation, elevation criteria and collegium selection together shape who reaches the higher judiciary.

|

v

CONSEQUENCE / CONTRAST: A wider pool can strengthen trust and deliberative experience without displacing competence.

|

v

UPSC TRAP / ANSWER-USE: Identity does not predetermine judgment, and undated representation percentages should not be used.

|

v

ANSWER-GRABBING FORMULATION: Representation is an institutional legitimacy question as well as a question of individual appointment.

SESSION 23 - INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS

VISUAL FIRST

Shared precedent and independence -> India constitutional supremacy | UK parliamentary sovereignty

This gateway locates India and the United Kingdom: judicial systems before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The judicial systems of India and the United Kingdom share common-law methods but differ on the legal authority of primary legislation.

Technical definition: India combines constitutional supremacy and strong-form judicial review; the UK combines parliamentary sovereignty with powerful interpretation and executive-legality review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Comparison should distinguish judicial method from the constitutional rule governing primary legislation.

MUST-WRITE KEYWORDS

- constitutional supremacy
- parliamentary sovereignty
- precedent
- judicial review
- declaration of incompatibility

How to use them: Frame the answer through constitutional supremacy; define parliamentary sovereignty, connect precedent with judicial review to explain the mechanism, and use declaration of incompatibility for the decisive comparison or qualification.

Visual 35 - India-UK comparison

Dimension	India	United Kingdom
Constitutional order	Written, supreme Constitution	Uncodified constitution; parliamentary sovereignty
Apex court	Supreme Court of India	UK Supreme Court
Review of primary legislation	Courts may invalidate unconstitutional laws	Courts ordinarily cannot invalidate a Westminster Act
Rights technique	Strong-form constitutional remedies	Interpretation and declaration mechanisms under Human Rights Act framework
Federal role	Constitutional umpire in Union-State disputes	Devolution questions across distinct UK legal systems
Precedent	Common-law doctrine plus Article 141	Common-law precedent
Executive review	Strong judicial review	Strong review of executive/administrative legality

- [FACT] Both systems value judicial independence, open justice, reasoned decisions and precedent.
- [FACT] India's Supreme Court may test legislation against a supreme written Constitution and review constitutional amendments under the basic-structure doctrine.
- [FACT] UK courts ordinarily cannot strike down primary Westminster legislation; a declaration of incompatibility does not itself nullify the Act.
- [LIMIT] The UK Constitution is **uncodified**, not literally unwritten.
- [ANALYSIS] Convergence lies in common-law method and executive review; divergence lies in the location of legal sovereignty.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** India and the United Kingdom share judicial method but differ in the legal location of final constitutional authority.

- **Named evidence:** India's written supreme Constitution, enforceable rights and basic-structure review contrast with Westminster parliamentary sovereignty and the UK's distinct legal systems.
- **Analysis:** The comparison explains why an Indian court may invalidate legislation while a UK court ordinarily uses interpretation or declarations within its statutory framework.
- **Qualification:** The UK Constitution is uncoded, not literally absent, and convergence does not erase structural divergence.
- **Prelims trap:** Do not copy the label 'integrated judiciary' mechanically to the United Kingdom.
- **Mains use:** Use a common-method/constitutional-authority matrix.
- **Mini recap:** Similar adjudicative craft operates inside different sovereignty structures.

Paragraph model: India and the United Kingdom share judicial method but differ in the legal location of final constitutional authority. India's written supreme Constitution, enforceable rights and basic-structure review contrast with Westminster parliamentary sovereignty and the UK's distinct legal systems. The comparison explains why an Indian court may invalidate legislation while a UK court ordinarily uses interpretation or declarations within its statutory framework. The UK Constitution is uncoded, not literally absent, and convergence does not erase structural divergence.

CLOSING RECALL FLOW - INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS

START / CONCEPT: India and the United Kingdom: judicial systems

|
v

EXACT TERMS: constitutional supremacy · parliamentary sovereignty · precedent · judicial review · declaration of incompatibility

|
v

MECHANISM / ARGUMENT: Both systems reason through precedent, but only Indian courts may invalidate primary legislation for constitutional inconsistency.

|
v

CONSEQUENCE / CONTRAST: The divergence explains the stronger constitutional-remedial position of India's Supreme Court.

|
v

UPSC TRAP / ANSWER-USE: Do not call the UK Constitution simply unwritten or infer that UK courts are institutionally weak.

|
v

ANSWER-GRABBING FORMULATION: Comparison should distinguish judicial method from the constitutional rule governing primary legislation.

SESSION 24 - INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER

VISUAL FIRST

India: collegium + retirement 65 | USA: presidential nomination + Senate confirmation + good-behaviour tenure

This gateway locates india and the usa: appointments and judicial power before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India and the United States protect judicial independence through different appointment and tenure arrangements.

Technical definition: India uses collegium-led recommendation and retirement at 65; the United States uses presidential nomination, Senate confirmation and Article III tenure during good behaviour.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The comparison exposes opposite risks: opaque insulation in India and visible politicisation in the United States.

MUST-WRITE KEYWORDS

- collegium
- Senate confirmation
- judicial tenure
- transparency
- politicisation

How to use them: Frame the answer through collegium; define Senate confirmation, connect judicial tenure with transparency to explain the mechanism, and use politicisation for the decisive comparison or qualification.

Visual 36 - Appointment comparison

Stage	India	USA
Formal appointer	President	President
Decisive process	Collegium recommendation; executive processing	Presidential nomination + Senate advice and consent
Public legislative hearing	No constitutionally required confirmation	Public Senate confirmation
Tenure	Until age 65	During good behaviour, effectively life tenure
Primary gain	Insulation from executive dominance	Visible inter-branch accountability
Primary risk	Opacity and delay	Partisan polarisation and ideological confirmation

Visual 37 - Wider judicial comparison

Dimension	India	USA
Court system	Integrated	Dual federal and State systems
Judicial review	Written Constitution + basic structure of amendments	Written Constitution; no Indian-style basic-structure doctrine
Advisory opinions	Article 143 permits presidential reference	Federal courts generally require a case or controversy
Apex tenure	Fixed retirement age	Life during good behaviour
Rights/remedies	Articles 32/226 plus PIL innovations	Federal standing and case-or-controversy limits

- [ANALYSIS] India maximises insulation but under-produces public reasons; the USA maximises visible political accountability but risks partisan capture.
- [LIMIT] Mechanical transplantation is unsound. Reform should add transparency to Indian insulation rather than import a different constitutional conflict.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** India and the United States trade transparency and insulation in opposite ways.
- **Named evidence:** India's Judges Cases prioritise judicial primacy; the US Constitution uses executive nomination, legislative confirmation and life tenure during good behaviour.
- **Analysis:** India reduces overt partisan confirmation but risks opacity; the USA exposes selection publicly but risks ideological polarisation.
- **Qualification:** Neither model can be transplanted apart from its wider constitutional and political system.
- **Prelims trap:** Do not describe US federal and State judiciaries as one integrated hierarchy.
- **Mains use:** Use the comparison to justify India-specific accountable-independence reforms.
- **Mini recap:** The reform question is not which model wins, but which risk India must correct.

Paragraph model: India and the United States trade transparency and insulation in opposite ways. India's Judges Cases prioritise judicial primacy; the US Constitution uses executive nomination, legislative confirmation and life tenure during good behaviour. India reduces overt partisan confirmation but risks opacity; the USA exposes selection publicly but risks ideological polarisation. Neither model can be transplanted apart from its wider constitutional and political system.

CLOSING RECALL FLOW - INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER

START / CONCEPT: India and the USA: appointments and judicial power

|

v

EXACT TERMS: collegium · Senate confirmation · judicial tenure · transparency · politicisation

|

v

MECHANISM / ARGUMENT: Each system allocates appointment checks among branches and then insulates adjudication through tenure.

|

v

CONSEQUENCE / CONTRAST: Different designs produce different balances between independence, democratic visibility and partisan risk.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: neither model can be transplanted without its wider constitutional separation-of-powers setting.

|

v

ANSWER-GRABBING FORMULATION: The comparison exposes opposite risks: opaque insulation in India and visible politicisation in the United States.

SESSION 25 - ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION

VISUAL FIRST

Advocates Act -> State Bar enrolment -> BCI standards/appeals -> Supreme Court practice rules/AoR

This gateway locates advocates act, bar council and professional regulation before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The legal profession is regulated through statutory Bar Councils and court-controlled rights of audience and practice.

Technical definition: The Advocates Act, 1961 assigns enrolment to State Bar Councils and national standards, education and disciplinary appellate functions to the Bar Council of India, subject to judicial review and court rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

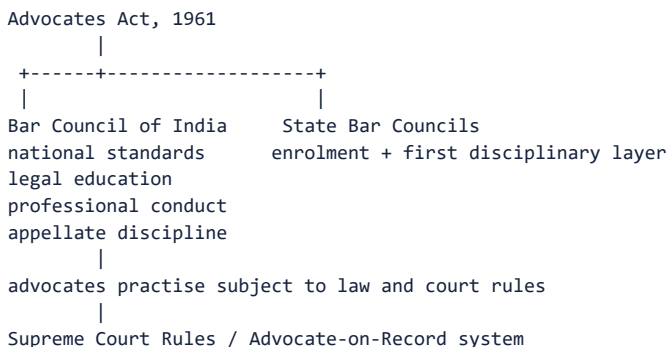
Professional regulation is shared among statutory councils and constitutional courts rather than monopolised by one body.

MUST-WRITE KEYWORDS

- **Advocates Act 1961**
- **Bar Council of India**
- **professional misconduct**
- **court rules**

How to use them: Frame the answer through Advocates Act 1961; define Bar Council of India, connect professional misconduct with court rules to explain the mechanism, and close with the decisive comparison or qualification.

Visual 38 - Legal profession ecosystem



- [FACT] The **Bar Council of India** is a statutory body under the Advocates Act, 1961, not a constitutional body.
- [FACT] State Bar Councils enrol advocates; the BCI lays standards of professional conduct and legal education and performs statutory disciplinary/apellate functions.
- [FACT] Courts regulate practice before them through lawful rules; the Supreme Court's Advocate-on-Record system is a specialised practice mechanism.
- [FACT] Senior Advocate designation is a court-conferred distinction governed by law and judicial standards.
- [LIMIT] The Supreme Court Bar Association (1998) is a professional association, not the statutory regulator of the entire profession.
- [ANALYSIS] An independent Bar is part of judicial independence because rights adjudication depends on fearless, competent representation.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The legal profession is governed by a statutory bar structure alongside the Court's procedural control.
- **Named evidence:** The Advocates Act, 1961 creates State Bar Councils and the Bar Council of India; Supreme Court Rules regulate practice and the Advocate-on-Record system.
- **Analysis:** Professional discipline and court-controlled filing responsibility protect both client rights and judicial administration.

- **Qualification:** The Attorney-General's Article 76/88 functions and right of audience are distinct from BCI regulation, while SCBA is an association.
- **Prelims trap:** BCI is statutory, not constitutional; SCBA is not the national regulator.
- **Mains use:** Use this paragraph to separate advocate regulation, court procedure and the Attorney-General interface.
- **Mini recap:** Statute regulates the profession; Court rules regulate Supreme Court practice.

Paragraph model: The legal profession is governed by a statutory bar structure alongside the Court's procedural control. The Advocates Act, 1961 creates State Bar Councils and the Bar Council of India; Supreme Court Rules regulate practice and the Advocate-on-Record system. Professional discipline and court-controlled filing responsibility protect both client rights and judicial administration. The Attorney-General's Article 76/88 functions and right of audience are distinct from BCI regulation, while SCBA is an association.

CLOSING RECALL FLOW - ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION

START / CONCEPT: Advocates Act, Bar Council and professional regulation

|
v

EXACT TERMS: Advocates Act 1961 • Bar Council of India • professional misconduct • court rules

|
v

MECHANISM / ARGUMENT: State councils enrol and discipline initially; the BCI sets standards and hears statutory appeals; courts regulate proceedings before them.

|
v

CONSEQUENCE / CONTRAST: The arrangement protects professional competence, ethics and the administration of justice.

|
v

UPSC TRAP / ANSWER-USE: The BCI is statutory, not constitutional, and State Bar Councils-not the BCI-ordinarily enrol advocates.

|
v

ANSWER-GRABBING FORMULATION: Professional regulation is shared among statutory councils and constitutional courts rather than monopolised by one body.

SESSION 26 - PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM

VISUAL FIRST

Access -> filing/listing -> hearing -> reasoned judgment -> implementation -> feedback

This gateway locates pendency, access to justice and e-courts reform before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Access to justice requires affordable entry, timely hearing, reasoned decision and effective implementation.

Technical definition: Judicial capacity, procedure, legal aid, case management, infrastructure and interoperable e-Courts systems jointly determine whether constitutional authority becomes delivered justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Pendency is a chain problem, so technology alone cannot cure every delay or exclusion.

MUST-WRITE KEYWORDS

- access to justice
- pendency
- e-Courts
- case management
- legal aid

How to use them: Frame the answer through access to justice; define pendency, connect e-Courts with case management to explain the mechanism, and use legal aid for the decisive comparison or qualification.

Visual 39 - Delay chain

large and varied inflow
+
government litigation
+
vacancies / uneven capacity
+
adjournments / procedural complexity
+
SLP-heavy apex docket
|
v
delay -> cost -> unequal access -> weaker enforcement

- [LIMIT] No later comprehensive official annual report was relied on by 7 September 2026; no unsupported live pendency total is printed.
- [ANALYSIS] Delay is not merely administrative. A remedy delivered too late can hollow out liberty, livelihood and federal certainty.
- [LIMIT] Pendency is a stock-flow problem: disposal alone is insufficient if filings, vacancies, process design and government appeals are ignored.

Visual 40 - Access barriers and responses

Access barrier	Reform direction
Distance from Delhi	Regional access through technology, stronger HCs and carefully debated structural options
Legal cost	Legal services, efficient admission filtering and predictable procedure
Language	Translation, accessible summaries and technology-assisted multilingual support
Digital divide	Assisted e-filing and physical help desks, not digital-only justice
Docket overload	Constitution Bench time, SLP discipline, case management and mediation
Data opacity	National Judicial Data Grid and regular official reporting

Visual 41 - e-Courts reform stack

Digitised records
|
e-filing + e-payment + electronic service
|
hybrid hearings where appropriate
|
case-flow management + dashboards
|
searchable judgments + neutral citations + translation
|
human safeguards: privacy, cybersecurity, accessibility, assisted access

- [CURRENT] The e-Courts Mission Mode Project, the e-Committee, digital filing, hybrid processes and judicial-data systems remain central reform instruments.
- [ANALYSIS] Technology should remove transaction costs, not automate exclusion.
- [LIMIT] Virtual access cannot substitute for judge strength, registry capacity, reasoned listing and physical access for digitally excluded litigants.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Judicial power becomes justice only when litigants can reach the Court and orders can be implemented.
- **Named evidence:** e-Filing, hybrid hearings, neutral citations, translation, legal services, live streaming after Swapnil Tripathi (2018) and e-Courts systems widen access and transparency.
- **Analysis:** Technology can reduce distance and information costs while case management and stronger High Courts reduce apex overload.

- **Qualification:** Digital systems can reproduce disability, language, connectivity, privacy and cybersecurity exclusion; no unsupported pendency total should be frozen.
- **Prelims trap:** Technology is an access tool, not a substitute for judges, registry reform or lower-court capacity.
- **Mains use:** Use a delivery-chain diagnosis linked to precise reforms.
- **Mini recap:** Authority is incomplete without timely, intelligible, accessible and executable remedies.

Paragraph model: Judicial power becomes justice only when litigants can reach the Court and orders can be implemented. e-Filing, hybrid hearings, neutral citations, translation, legal services, live streaming after Swapnil Tripathi (2018) and e-Courts systems widen access and transparency. Technology can reduce distance and information costs while case management and stronger High Courts reduce apex overload. Digital systems can reproduce disability, language, connectivity, privacy and cybersecurity exclusion; no unsupported pendency total should be frozen.

CLOSING RECALL FLOW - PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM

START / CONCEPT: Pendency, access to justice and e-Courts reform

|
v

EXACT TERMS: access to justice · pendency · e-Courts · case management · legal aid

|
v

MECHANISM / ARGUMENT: Filing, listing, hearing, judgment and enforcement must each have adequate people, process and infrastructure.

|
v

CONSEQUENCE / CONTRAST: Matched reforms can reduce delay and widen access while preserving fairness and open justice.

|
v

UPSC TRAP / ANSWER-USE: Do not freeze a pendency or vacancy number without a dated official source, or treat digitisation as a substitute for judges and inclusive assistance.

|
v

ANSWER-GRABBING FORMULATION: Pendency is a chain problem, so technology alone cannot cure every delay or exclusion.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Map Articles 124-147 with exact appointment, qualification, tenure, removal, independence, jurisdiction, precedent, review, contempt and complete-justice rules; do not merge Article 32, 136, 137, 141, 142 or 143.
- **Close distinction:** Keep collegium doctrine, NJAC invalidation, judicial review, Basic Structure, PIL and judicial legislation proposition-specific. Article 142 supplies complete justice in a cause or matter, not free-standing power to ignore substantive law.
- **Legal/source limit:** Act 14 of 2026 raises the statutory maximum to thirty-seven judges excluding the CJI, total sanctioned strength thirty-eight, deemed in force from 16 May 2026. Working strength and pendency remain dynamic.

Semantic-completeness ownership and PYQ control

- **Constitutional identity:** Articles 124-147 create the Supreme Court within an integrated judicial hierarchy. It is simultaneously constitutional court, federal umpire, Fundamental-Rights guarantor and final appellate court; High Courts retain independent Articles 226/227/235 functions.

- **Current statutory strength:** the Supreme Court (Number of Judges) Amendment Act, 2026, Act 14 of 2026, substitutes thirty-seven for thirty-three judges excluding the Chief Justice and is deemed in force from 16 May 2026. Sanctioned strength is therefore thirty-eight including the CJI. Working strength remains a live roster fact and must be verified separately.

- **Appointment and independence:** Article 124 text, the First, Second and Third Judges Cases, the 99th Amendment/NJAC invalidation and the current collegium route must remain chronological. Security of tenure, charged expenditure, Article 121, removal and post-retirement restrictions are different safeguards.

- **Jurisdiction gateway:** Article 131 original jurisdiction requires a legal-right federal dispute; Article 32 concerns Fundamental Rights; Articles 132-134A govern appeals; Article 136 is discretionary special leave; Article 143 advice is not an ordinary binding decree. Review under Article 137 and curative relief are separate correction routes.
- **Precedent and complete justice:** Article 141 binds through the declared ratio, subject to bench strength; Article 142 operates in the cause or matter before the Court and cannot supplant substantive constitutional or statutory limits. Articles 129, 144 and 145 govern record/contempt, aid and procedure.
- **Constitutional review:** Kesavananda Bharati (1973), Minerva Mills (1980) and I.R. Coelho (2007) control amendment and Ninth-Schedule review; L. Chandra Kumar (1997) preserves High Court/Supreme Court review over tribunals. Judicial review and independence are Basic Structure, not claims of judicial supremacy.
- **PIL and legislation:** Hussainara Khatoon (1979), S.P. Gupta, Vishaka (1997) and continuing mandamus explain access and gap-filling. Rights enforcement and interim norms must be distinguished from permanent policy substitution and merits governance.
- **Accountability and diversity:** impeachment/removal, in-house procedure, reasoned collegium disclosure, recusal, assets, representation and access reform address different deficits. No lapsed accountability Bill may be taught as law.
- **Current control:** Justice Surya Kant is Chief Justice of India on the official roster. Special Reference No. 1 of 2025 is an Article 143 advisory opinion: no rigid assent timelines or deemed assent, while prolonged unexplained indefinite inaction remains open to limited mandamus.
- **Four-ledger/PYQ control:** all direct and routed 2018-2025 jurisdiction, independence, collegium, PIL, environment and accountability demands were preserved; current judge, vacancy and pendency figures remain date-labelled.

BASIC MCQS / REMEDIATION

32 original MCQs

Answer rotation: ABCD repeated eight times. Each question contains four substantive option-specific explanations and one unique question-specific Examiner trap.

MCQ 1. Integrated judiciary

Which proposition best describes India's judicial structure?

A. One integrated hierarchy administers both Union and State law. B. Separate federal and State systems end in different apex courts. C. High Courts are administrative branches of the Supreme Court. D. State law is outside Supreme Court interpretation.

Answer: A.

Option explanations:

- **A:** Correct: India has one integrated judicial hierarchy applying Union and State law.
- **B:** Incorrect: the dual federal-State court model is associated with the United States, not India.
- **C:** Incorrect: High Courts possess independent constitutional powers under Articles 214, 226, 227 and 235.
- **D:** Incorrect: State-law questions can reach the Supreme Court through constitutional and appellate routes.

Examiner trap 1: Integrated hierarchy means legal unity, not unitary administrative control.

MCQ 2. Seat under Article 130

Under Article 130, which statement is correct?

A. The Court must sit annually in every State capital. B. The Court sits in Delhi, while the CJI may appoint another place with presidential approval. C. The collegium may permanently shift the seat. D. Parliament must approve each circuit sitting by constitutional amendment.

Answer: B.

Option explanations:

- **A:** Incorrect: Article 130 creates no annual State-capital circuit.
- **B:** Correct: Delhi is the constitutional seat, with a CJI-plus-presidential-approval route for another place.
- **C:** Incorrect: the collegium does not hold the Article 130 location power.
- **D:** Incorrect: Article 130 itself supplies the mechanism; constitutional amendment is unnecessary.

Examiner trap 2: A demand for regional benches is a reform proposal, not proof that Article 130 already mandates them.

MCQ 3. Constitution Bench

Article 145(3) requires at least five judges when the Court decides:

A. every Fundamental Rights petition. B. every appeal from a High Court. C. a substantial question of law as to constitutional interpretation or an Article 143 reference. D. every case in which Union and State governments disagree.

Answer: C.

Option explanations:

- **A:** Incorrect: ordinary Article 32 petitions need not be heard by five judges.
- **B:** Incorrect: High Court appeals commonly go before smaller benches.
- **C:** Correct: Article 145(3) fixes the five-judge minimum for the specified constitutional questions and references.
- **D:** Incorrect: party identity does not itself determine Constitution Bench size.

Examiner trap 3: A constitutional argument is not enough; the interpretive question must be substantial and arise for decision.

MCQ 4. Sanctioned and working strength

Which statement was accurate on the official control date of 7 September 2026?

A. The Constitution permanently fixed 38 judges. B. The 2019 Act still fixed the total at 34. C. Working strength necessarily equalled sanctioned strength. D. Act 14 of 2026 sanctioned 38 including the CJI, while the official roster listed 34 sitting judges.

Answer: D.

Option explanations:

- **A:** Incorrect: Article 124 leaves the number of puisne judges to parliamentary law.
- **B:** Incorrect: the 2019 total was superseded by the 2026 amendment.
- **C:** Incorrect: vacancies can make working strength lower than the statutory ceiling.
- **D:** Correct: the amended ceiling was 38 and the dated official roster contained 34 names.

Examiner trap 4: Always separate statutory ceiling, dated working strength and resulting vacancy count.

MCQ 5. Qualifications

Which person satisfies an express Article 124 qualification route, assuming Indian citizenship?

A. A distinguished jurist in the President's opinion. B. Any advocate with five years' practice. C. Any district judge with three years' service. D. Any legal academic regardless of citizenship.

Answer: A.

Option explanations:

- **A:** Correct: distinguished jurist is an express route, though unused in appointment practice.
- **B:** Incorrect: the advocate route requires at least ten years as a High Court advocate.
- **C:** Incorrect: district-judge service by itself is not the stated Supreme Court route.
- **D:** Incorrect: citizenship of India is mandatory for every route.

Examiner trap 5: The Constitution prescribes no minimum appointment age, but it does prescribe citizenship and professional routes.

MCQ 6. CJI seniority convention

Appointment of the senior-most Supreme Court judge considered fit as CJI is best classified as:

A. a rule inserted by the 99th Amendment. B. a constitutional convention reflected in appointment practice, not express Article 124 text. C. a requirement of the Judges (Inquiry) Act, 1968. D. a decision made by all High Court Chief Justices.

Answer: B.

Option explanations:

- **A:** Incorrect: the 99th Amendment concerned the NJAC and was invalidated.
- **B:** Correct: seniority is convention/Memorandum-of-Procedure practice, historically breached in 1973 and 1977.
- **C:** Incorrect: the 1968 Act concerns investigation for removal, not CJI selection.
- **D:** Incorrect: High Court Chief Justices do not elect the CJI.

Examiner trap 6: Convention may be settled and important without becoming constitutional text.

MCQ 7. Third Judges Case

For a Supreme Court appointment, the 1998 Presidential Reference requires consultation within a collegium comprising:

A. the CJI acting alone. B. the CJI and two senior-most Supreme Court judges. C. the CJI and four senior-most Supreme Court judges. D. the CJI, Law Minister and two eminent persons.

Answer: C.

Option explanations:

- **A:** Incorrect: the institutional opinion cannot be reduced to the CJI's personal view.
- **B:** Incorrect: the two-senior-most formulation is associated with a different stage of collegium evolution.
- **C:** Correct: the Third Judges Case expanded the Supreme Court collegium to the CJI plus four senior-most judges.
- **D:** Incorrect: that mixed composition resembles part of the invalidated NJAC design.

Examiner trap 7: Remember the Supreme Court appointment collegium as five judges in total.

MCQ 8. NJAC boundary

Which statement most accurately describes the 2015 NJAC judgment?

A. It upheld the 99th Amendment but invalidated only rules. B. It held that appointments can never involve any non-judge. C. It converted the collegium into express constitutional text. D. It struck down the 99th Amendment and NJAC Act for damaging judicial independence, without declaring every possible commission unconstitutional.

Answer: D.

Option explanations:

- **A:** Incorrect: both the constitutional amendment and the NJAC Act fell.
- **B:** Incorrect: the holding addressed the enacted design and basic-structure defect, not every hypothetical commission.
- **C:** Incorrect: the collegium remains a judicial construction.
- **D:** Correct: SCAORA (2015) restored the collegium because the specific NJAC design impaired judicial independence.

Examiner trap 8: Do not overclaim the judgment as an eternal ban on appointment commissions.

MCQ 9. Removal

A Supreme Court judge may be removed after:

A. each House adopts an address in the same session by the prescribed special majority on proved misbehaviour or incapacity, followed by a presidential order. B. a simple-majority joint sitting. C. a collegium finding of ethical impropriety. D. a Supreme Court Bar Association resolution.

Answer: A.

Option explanations:

- **A:** Correct: Article 124(4) requires the separate-House special-majority address and presidential order.
- **B:** Incorrect: removal has no joint sitting and no simple-majority route.
- **C:** Incorrect: the collegium cannot constitutionally remove a judge.
- **D:** Incorrect: a voluntary association cannot exercise Article 124(4) power.

Examiner trap 9: The Constitution uses 'removal', while public discussion often inaccurately says 'impeachment'.

MCQ 10. Financial independence

Which provision protects a sitting Supreme Court judge's allowances and pension rights from disadvantageous variation after appointment, subject to the Financial Emergency exception?

A. Article 121 B. Article 125 C. Article 129 D. Article 146(3)

Answer: B.

Option explanations:

- **A:** Incorrect: Article 121 restricts parliamentary discussion of judicial conduct.
- **B:** Correct: Article 125 contains the service-condition protection and its constitutional exception.
- **C:** Incorrect: Article 129 concerns court-of-record and contempt power.
- **D:** Incorrect: Article 146(3) charges the Court's administrative expenses on the Consolidated Fund.

Examiner trap 10: Salary expenditure and Court administrative expenditure are protected through related but distinct provisions.

MCQ 11. Temporary judges

Which matching is constitutionally correct?

A. Article 126-retired judge; 127-acting CJI; 128-ad hoc judge. B. Article 126-ad hoc judge; 127-retired judge; 128-acting CJI. C. Article 126-acting CJI; 127-ad hoc judge; 128-retired judge sitting. D. All three concern permanent appointments.

Answer: C.

Option explanations:

- **A:** Incorrect: each Article is shifted to the wrong temporary office.
- **B:** Incorrect: Article 126 does not govern ad hoc judges and Article 128 does not govern an acting CJI.
- **C:** Correct: Articles 126, 127 and 128 respectively address acting CJI, ad hoc judge and retired judge sitting.
- **D:** Incorrect: these are continuity mechanisms rather than permanent Article 124 appointments.

Examiner trap 11: The three Articles differ in trigger, eligible person and consent route.

MCQ 12. Post-retirement practice

Article 124(7) provides that a former Supreme Court judge:

A. cannot hold any public office. B. cannot teach or publish. C. automatically joins an arbitral panel. D. cannot plead or act before any court or authority within India.

Answer: D.

Option explanations:

- **A:** Incorrect: the Constitution does not impose a complete post-retirement public-office ban.
- **B:** Incorrect: academic work is not prohibited by Article 124(7).
- **C:** Incorrect: no automatic arbitral appointment follows retirement.
- **D:** Correct: the textual bar concerns pleading or acting before any Indian court or authority.

Examiner trap 12: The practice bar should not be inflated into a prohibition on every post-retirement assignment.

MCQ 13. Article 131

Article 131 principally confers:

A. exclusive original jurisdiction over specified Union-State or State-State disputes involving a legal right. B. general original jurisdiction over all government contracts. C. automatic jurisdiction over inter-State river-water disputes. D. exclusive jurisdiction over every election petition.

Answer: A.

Option explanations:

- **A:** Correct: both the listed governmental parties and the legal-right issue are essential.
- **B:** Incorrect: ordinary commercial disputes do not become Article 131 cases merely because government is involved.
- **C:** Incorrect: Article 262 legislation may exclude Supreme Court jurisdiction over river-water disputes.
- **D:** Incorrect: Article 71 separately governs President and Vice-President election disputes.

Examiner trap 13: Test parties, legal right and exclusions before calling a dispute federal original jurisdiction.

MCQ 14. Articles 32 and 226

Which comparison is correct?

A. Article 32 covers every legal right and Article 226 only Fundamental Rights. B. Article 32 is itself a Fundamental Right; Article 226 is wider in purpose because it also reaches other legal rights. C. Article 226 has nationwide territorial reach while Article 32 is State-bound. D. High Courts cannot issue quo warranto.

Answer: B.

Option explanations:

- **A:** Incorrect: the subject-matter scopes are reversed.
- **B:** Correct: Article 32 guarantees FR enforcement while Article 226 extends to other legal purposes.
- **C:** Incorrect: the Supreme Court's reach is national; High Court jurisdiction is territorially connected.
- **D:** Incorrect: High Courts may issue all five constitutional writs.

Examiner trap 14: Wider in purpose and wider in territory are different comparisons.

MCQ 15. Transfer of cases

Article 139A enables the Supreme Court, in the specified circumstances, to:

A. appoint additional High Court judges. B. adjudicate judicial misconduct complaints. C. withdraw cases involving the same or substantially the same substantial legal questions and transfer cases between High Courts. D. change the principal seat without presidential approval.

Answer: C.

Option explanations:

- **A:** Incorrect: additional High Court judges are governed by Article 224.
- **B:** Incorrect: Article 139A is not an ethics mechanism.
- **C:** Correct: it coordinates overlapping substantial legal questions and inter-High-Court transfers.
- **D:** Incorrect: Article 130 governs the Supreme Court's seat.

Examiner trap 15: Separate Article 139A constitutional transfer from statutory criminal/civil transfer powers.

MCQ 16. Special leave

Article 136 special leave is:

A. a guaranteed appeal after every High Court order. B. limited to civil matters. C. available from Armed-Forces courts without exception. D. an extraordinary discretionary route from courts or tribunals, excluding those constituted under Armed-Forces law.

Answer: D.

Option explanations:

- **A:** Incorrect: no litigant has an automatic Article 136 appeal.
- **B:** Incorrect: the provision is not confined to civil jurisdiction.
- **C:** Incorrect: the Constitution expressly excludes Armed-Forces courts and tribunals.
- **D:** Correct: SLP is broad in source but exceptional in exercise.

Examiner trap 16: Breadth of jurisdiction does not convert discretion into a regular fourth appeal.

MCQ 17. Review

Article 137 authorises the Supreme Court to:

A. review its own judgments or orders subject to parliamentary law and Court rules. B. reopen every dismissed SLP as of right. C. review only advisory opinions. D. transfer every review to a High Court.

Answer: A.

Option explanations:

- **A:** Correct: review is a constitutionally authorised, rule-governed self-correction power.
- **B:** Incorrect: dismissal of an SLP does not create an automatic rehearing.
- **C:** Incorrect: Article 137 is not confined to references.
- **D:** Incorrect: the Supreme Court reviews its own decisions.

Examiner trap 17: Review is narrower than appeal and cannot be argued as a second merits hearing.

MCQ 18. Curative petition

The curative petition recognised in *Rupa Ashok Hurra* (2002) is:

A. a statutory appeal under the CPC. B. an exceptional post-review remedy against gross miscarriage, subject to strict screening. C. an Article 143 reference. D. a remedy available before ordinary review.

Answer: B.

Option explanations:

- **A:** Incorrect: curative jurisdiction was judicially fashioned, not created as a regular statutory appeal.
- **B:** Correct: it is a rare final safeguard after review, especially for grave natural-justice failure or bias.
- **C:** Incorrect: the President does not initiate a curative petition.
- **D:** Incorrect: review ordinarily precedes curative consideration.

Examiner trap 18: Curative relief is not a routine second review.

MCQ 19. Advisory jurisdiction

Which statement about Article 143 is correct?

A. A private party may demand an advisory opinion. B. Every opinion binds future benches exactly like Article 141 precedent. C. The President refers; an Article 143(1) opinion is advisory and the Court may decline to answer. D. The Court may grant deemed assent to legislation through every reference.

Answer: C.

Option explanations:

- **A:** Incorrect: the reference power belongs to the President.
- **B:** Incorrect: an advisory opinion is not an ordinary binding decree.
- **C:** Correct: clause (1) uses a discretionary reporting structure for public-importance questions.
- **D:** Incorrect: the 2025 assent opinion rejected automatic deemed assent under Article 142.

Examiner trap 19: Authoritative constitutional advice remains distinct from binding adjudication.

MCQ 20. Contempt

Which proposition is constitutionally accurate?

A. The 1971 Act creates the whole contempt power. B. Fair criticism always amounts to criminal contempt. C. Parliament may abolish Article 129 by ordinary law. D. Article 129 is the constitutional source; the 1971 Act regulates but cannot extinguish that power.

Answer: D.

Option explanations:

- **A:** Incorrect: constitutional courts possess inherent authority under Articles 129 and 215.
- **B:** Incorrect: criticism must be distinguished from substantial interference with justice.
- **C:** Incorrect: ordinary legislation cannot erase an express constitutional power.
- **D:** Correct: statute structures contempt while constitutional authority remains controlling.

Examiner trap 20: The object is administration of justice, not protection from every reputational injury.

MCQ 21. Article 141

Article 141 means that:

A. the law declared by the Supreme Court binds all courts in India, with ratio and bench strength controlling. B. every factual observation in every order is binding law. C. a smaller bench may overrule a larger bench. D. Parliament is bound as though every judgment amended the Constitution.

Answer: A.

Option explanations:

- **A:** Correct: the binding proposition is the declared law, read through ratio and precedent discipline.
- **B:** Incorrect: obiter and fact-specific observations do not automatically become binding ratios.
- **C:** Incorrect: judicial discipline requires reference to an equal or larger bench.
- **D:** Incorrect: judgments interpret and apply law; they are not constitutional amendments.

Examiner trap 21: Identify the ratio and the authoritative bench rather than citing a case name alone.

MCQ 22. Article 142

The safest statement of Article 142 is:

A. it authorises permanent law-making whenever equity favours it. B. it permits complete-justice orders in a pending cause but cannot violate Fundamental Rights or supplant substantive law. C. it is confined to advisory references. D. it allows any statutory prohibition to be ignored.

Answer: B.

Option explanations:

- **A:** Incorrect: Article 142 is remedial, not a general legislative competence.
- **B:** Correct: Prem Chand Garg and Supreme Court Bar Association supply constitutional and substantive-law limits.
- **C:** Incorrect: the power operates in causes or matters before the Court generally.
- **D:** Incorrect: complete justice cannot become a licence to defeat governing law.

Examiner trap 22: Use 'supplement, not supplant' and avoid calling Article 142 unlimited.

MCQ 23. Article 144

Article 144 requires:

A. only subordinate courts to follow Supreme Court procedure. B. the Union Cabinet to approve every decree. C. all civil and judicial authorities in India to act in aid of the Supreme Court. D. the Court to seek State consent before enforcement.

Answer: C.

Option explanations:

- **A:** Incorrect: the duty is not restricted to subordinate courts.
- **B:** Incorrect: executive approval is not a condition for judicial authority.
- **C:** Correct: Article 144 supplies a constitution-wide assistance obligation.
- **D:** Incorrect: State consent is not the textual trigger.

Examiner trap 23: Article 144 is the implementation bridge, not the source of appellate jurisdiction.

MCQ 24. Article 145

Article 145 primarily concerns:

A. the retirement age of judges. B. federal original jurisdiction. C. the statutory strength of the Court. D. Supreme Court rules of practice/procedure and specified bench requirements.

Answer: D.

Option explanations:

- **A:** Incorrect: retirement at 65 appears in Article 124.
- **B:** Incorrect: Article 131 governs federal original jurisdiction.
- **C:** Incorrect: Parliament fixes strength under the Article 124 statutory framework.
- **D:** Correct: Article 145 includes rule-making and the five-judge constitutional minimum.

Examiner trap 24: Rules require presidential approval, but the President does not decide individual bench composition.

MCQ 25. Judicial review

Which statement best captures judicial review?

A. It tests constitutional validity of legislative and executive action and is part of the basic structure. B. It permits courts to replace any policy they consider unwise. C. It exists only under Article 32. D. It makes every Ninth Schedule law automatically void.

Answer: A.

Option explanations:

- **A:** Correct: review enforces constitutional limits across several provisions and doctrines.
- **B:** Incorrect: legality review does not authorise merits substitution.
- **C:** Incorrect: Articles 13, 226 and other jurisdictional provisions also support review.
- **D:** Incorrect: post-1973 insertion creates reviewability, not automatic invalidity.

Examiner trap 25: Constitutional supremacy differs from judicial policy supremacy.

MCQ 26. Tribunal review

L. Chandra Kumar (1997) held that:

A. tribunals may finally exclude all High Court review. B. tribunal decisions remain subject to Articles 226/227 review, with constitutional judicial review preserved as basic structure. C. every tribunal order goes directly to a Constitution Bench. D. tribunals themselves form the basic structure.

Answer: B.

Option explanations:

- **A:** Incorrect: exclusion of High Court review was the defect rejected.
- **B:** Correct: tribunals supplement rather than replace constitutional courts.
- **C:** Incorrect: ordinary review proceeds through the appropriate High Court, not automatically a five-judge bench.
- **D:** Incorrect: the protected feature is constitutional judicial review, not each tribunal.

Examiner trap 26: Specialised first-instance adjudication and constitutional supervision can coexist.

MCQ 27. PIL standing

S.P. Gupta (1981) is important to PIL because it:

A. abolished the need for legal injury in every case. B. created the National Legal Services Authority. C. widened representative standing for bona fide public-interest claims involving persons unable to approach the Court. D. made every letter a mandatory writ petition.

Answer: C.

Option explanations:

- **A:** Incorrect: PIL relaxes standing; it does not erase justiciability or injury.
- **B:** Incorrect: NALSA rests on later statutory architecture.
- **C:** Correct: the case helped broaden locus standi for disadvantaged groups.
- **D:** Incorrect: epistolary jurisdiction remains judicially screened.

Examiner trap 27: Public interest is a gateway for genuine collective injury, not publicity-interest litigation.

MCQ 28. Judicial legislation

Vishaka (1997) is best understood as:

A. a permanent judicial takeover of workplace regulation. B. a declaration that treaties automatically override statutes. C. a contempt case. D. rights-based interim guidelines in a legislative vacuum, later superseded by the 2013 statute.

Answer: D.

Option explanations:

- **A:** Incorrect: the guidelines expressly operated until legislation.
- **B:** Incorrect: international norms were used consistently with constitutional guarantees, not as an automatic supremacy rule.
- **C:** Incorrect: the case concerned workplace sexual harassment and rights protection.
- **D:** Correct: it is the classic bounded gap-filling example under Article 141.

Examiner trap 28: Defensible judicial legislation is temporary, rights-anchored and yielding to valid statute.

MCQ 29. Recusal

Which proposition best describes Supreme Court recusal practice?

A. The impartiality principle is judicially recognised, but no single exhaustive statutory recusal code compels public reasons in every case. B. A litigant may choose the replacement judge. C. Every allegation automatically disqualifies the judge. D. Recusal is decided by Parliament.

Answer: A.

Option explanations:

- **A:** Correct: natural-justice principles operate through judge-led practice rather than one comprehensive statute.
- **B:** Incorrect: parties cannot select the bench.
- **C:** Incorrect: tactical allegations do not automatically establish reasonable apprehension of bias.
- **D:** Incorrect: Parliament does not decide case-specific recusals.

Examiner trap 29: Balance actual/apparent impartiality against strategic bench-shopping.

MCQ 30. Attorney-General interface

Which Supreme Court-related statement about the Attorney-General is correct?

A. The Attorney-General appoints Advocates-on-Record. B. The Attorney-General has a right of audience in all courts in India and may assist the Supreme Court, but is not the Court's administrative officer. C. The Attorney-General is a member of the collegium. D. The Attorney-General decides Article 131 disputes.

Answer: B.

Option explanations:

- **A:** Incorrect: Advocate-on-Record status is governed by Supreme Court practice rules.
- **B:** Correct: Article 76 and statutory/professional law support the Union's chief legal officer and right of audience.
- **C:** Incorrect: the Attorney-General has no seat in the collegium.
- **D:** Incorrect: adjudication belongs to the Court.

Examiner trap 30: Separate the Union's chief legal adviser from the Court, BCI and SCBA.

MCQ 31. Live streaming

Swapnil Tripathi (2018) is associated with:

A. abolition of open-court hearings. B. mandatory broadcast of every trial without exception. C. recognition and guidelines for live streaming proceedings of constitutional/national importance, subject to safeguards. D. replacement of court records by video archives.

Answer: C.

Option explanations:

- **A:** Incorrect: live streaming extends rather than abolishes open justice.
- **B:** Incorrect: privacy, sensitivity and administration require exclusions and safeguards.
- **C:** Correct: the judgment constitutionalised technology-assisted open-court access for suitable proceedings.
- **D:** Incorrect: audiovisual access supplements the authoritative judicial record.

Examiner trap 31: Open justice supports streaming, but privacy and fair-trial interests still govern exclusions.

MCQ 32. e-Courts reform

Which reform package best addresses Supreme Court access without technological overclaim?

A. Only more livestream cameras. B. Only a higher sanctioned strength. C. Only compulsory virtual hearings. D. e-filing and hybrid access plus physical assistance, translation, legal aid, case management, cybersecurity and stronger High Courts.

Answer: D.

Option explanations:

- **A:** Incorrect: transparency alone does not solve filing, cost or delay.
- **B:** Incorrect: judge numbers cannot by themselves repair procedure and lower-court capacity.
- **C:** Incorrect: compulsory virtual access may exclude litigants with connectivity or disability barriers.
- **D:** Correct: the combined institutional package addresses entry, processing, comprehension, security and apex overload.

Examiner trap 32: Technology is an enabling layer, not a substitute for human assistance and institutional reform.

PYQS AND ANSWER PRACTICE

Answer-writing control

Marks	Maximum length	Minimum viable architecture
10	150 words	thesis -> two mechanisms -> named evidence -> qualification -> verdict
15	250 words	boundary -> 4-5 dimensions -> authority -> counterpoint -> reform/verdict
20	250 words	constitutional map -> operation -> criticism -> reforms -> qualified conclusion

Mandatory paragraph logic: claim -> named evidence -> analysis -> qualification.

Eight audited routed Mains PYQs with model answers

PYQ-M1. 2020 GS-II Q4 - Convergence and divergence of Indian and UK judicial systems

Demand decoding

- "Highlight key points" requires compact comparison, not two separate country descriptions.
- **10 marks | 150 words:** use common method, constitutional divergence and one consequence.

Model answer

Claim: Indian and UK judicial systems share a common-law method but operate under opposite locations of legal sovereignty.

Named evidence: Both use precedent, reasoned judgments, open courts and judicial review of executive legality. India's **Articles 32, 131-136 and 141** place a constitutional and appellate Supreme Court atop an integrated hierarchy. It may invalidate legislation and, under **Kesavananda Bharati (1973)***, constitutional amendments damaging basic structure. The UK Supreme Court is an independent apex court within the UK's distinct legal systems, but parliamentary sovereignty means it ordinarily cannot nullify a Westminster Act; a Human Rights Act declaration of incompatibility does not itself invalidate legislation.

Analysis: Thus convergence lies in adjudicatory craft and rule-of-law control, while divergence lies in constitutional supremacy versus parliamentary sovereignty.

Qualification: UK courts remain powerful in statutory interpretation, common law and executive review; their inability to strike primary legislation does not imply institutional weakness.

Verdict: India has strong-form constitutional review; the UK combines judicial independence with legislative legal supremacy.

Examiner note: The comparison is dimension-based and avoids calling the UK Constitution "unwritten".

Mark/word discipline: 10 marks; target 145-155 words; 3 comparative dimensions and one qualification.

Why this earns marks: The answer compares legal sovereignty by dimensions, uses the correct UK qualification and closes with a precise strong-form-review distinction.

How to improve this answer: In 150 words retain precedent, constitutional supremacy versus parliamentary sovereignty, one Human Rights Act qualification and the final contrast; omit institutional history.

PYQ-M2. 2020 GS-II Q12 - Judicial legislation, separation of powers and public-interest petitions

Demand decoding

- "Justify" requires a defence of bounded gap-filling, followed by the constitutional limit.
- **15 marks | 250 words:** define judicial legislation, explain PIL as vehicle, use at least four named anchors.

Model answer

Claim: Judicial legislation is justified in India when it temporarily fills a rights-threatening legal vacuum; it becomes illegitimate when it substitutes the Court for Parliament.

Named evidence: Articles **32** and **226** empower constitutional remedies, while Article **141** gives binding force to law declared. Relaxed locus standi in **S.P. Gupta (1981)** allowed public-spirited litigants to represent those unable to approach courts. In **Vishaka v. State of Rajasthan (1997)**, the Supreme Court framed workplace-sexual-harassment guidelines from Articles 14, 15, 19 and 21 and CEDAW, expressly operating until legislation. Parliament's **2013 Act** then occupied the field. Continuing mandamus in **Vineet Narain (1998)** demonstrates how PIL can secure implementation.

Analysis: India's functional separation of powers permits limited overlap where judicial inaction would leave Fundamental Rights without remedy. PIL supplies access; Articles 141/142 supply effective relief.

Qualification: **Supreme Court Bar Association (1998)*** holds that Article 142 supplements but cannot supplant substantive law. Courts lack legislative fact-finding and democratic accountability, and open-ended supervision can become governance.

Verdict: Judicial legislation is a constitutional bridge across an exceptional vacuum, not a permanent judicial seat in the legislature.

Examiner note: The answer justifies rather than merely describes, and the 2013 statute proves the temporary nature of the bridge.

Mark/word discipline: 15 marks; target 230-250 words; 5 named units, one mechanism and one hard limit.

Why this earns marks: It defines bounded judicial legislation, links PIL to the remedial mechanism and proves the limit through Vishaka (1997), the 2013 Act and SCBA.

How to improve this answer: Compress around legal vacuum, Articles 32/141, Vishaka (1997) and SCBA; explicitly state that statutory enactment displaces the interim judicial norm.

PYQ-M3. 2021 GS-II Q2 - Desirability of greater representation of women in the higher judiciary

Demand decoding

- "Discuss desirability" requires reasons, constraints and a non-tokenistic route.
- **10 marks | 150 words:** equality anchor, legitimacy analysis, pipeline qualification.

Model answer

Claim: Greater representation of women in the higher judiciary is desirable because equality in public institutions strengthens both adjudicatory perspective and democratic legitimacy.

Named evidence: Articles **14**, **15** and **16** express the equality commitment. **Justice M. Fathima Beevi** became the first woman Supreme Court judge in **1989**, demonstrating how recent the opening of the apex bench was. A more diverse bench can improve institutional trust, widen deliberative experience and create role models across the Bar and judicial service.

Analysis: "Merit" is produced through access to briefs, senior designation, leadership and visibility. If those pipelines are unequal, formally neutral appointment may reproduce exclusion.

Qualification: Identity does not predetermine a judicial view, and diversity cannot replace competence. Current percentages should not be cited without dated official verification.

Verdict: Reform should widen the feeder pool, publish diversity-aware selection criteria and ensure fair professional opportunity, making representation a component of merit rather than tokenism.

Examiner note: The answer links representation to institutional design and avoids unsupported current numbers.

Mark/word discipline: 10 marks; target 145-155 words; 2 constitutional anchors, one historical fact and one pipeline reform.

Why this earns marks: Equality text, one historical anchor, pipeline analysis and a non-tokenistic reform directly answer desirability rather than merely listing low representation.

How to improve this answer: For 150 words retain Articles 14-16, Fathima Beevi, pipeline inequality and transparent diversity-aware criteria; avoid undated percentages.

PYQ-M4. 2022 GS-II Q1 - Constitutionalisation of environmental problems by the Supreme Court

Demand decoding

- "Discuss with case laws" makes cases the analytical evidence, not decorative names.
- **10 marks | 150 words:** constitutional text, three doctrinal innovations, implementation limit.

Model answer

Claim: The Supreme Court constitutionalised environmental problems by converting ecological welfare from a policy objective into an enforceable dimension of life and dignity.

Named evidence: It read **Article 21** with **Articles 48A and 51A(g)**. **Subhash Kumar (1991)** recognised a pollution-free environment within Article 21. **M.C. Mehta (Oleum Gas Leak, 1987)** evolved absolute liability for hazardous enterprises. **Vellore Citizens (1996)** incorporated precaution, polluter pays and sustainable development; **M.C. Mehta v. Kamal Nath (1997)** applied public trust. **T.N. Godavarman (1996 onward)** used continuing mandamus in forest governance.

Analysis: Rights language enabled standing, judicial review and effective remedies where regulatory failure threatened health and livelihood.

Qualification: Principles require scientific application, and long supervision risks judicial administration. CPCB, State boards, governments and the NGT remain indispensable.

Verdict: Constitutionalisation transformed environmental accountability, but durable protection requires courts to catalyse rather than replace regulators.

Examiner note: Each case is attached to an exact proposition and followed by an institutional limit.

Mark/word discipline: 10 marks; target 145-155 words; 4-5 cases, no case catalogue without analysis.

Why this earns marks: Every environmental case is tied to a doctrine, followed by regulator dependence and an institutional-restraint verdict.

How to improve this answer: Keep Article 21 with Articles 48A/51A(g), three doctrine-case pairs and the regulator limit; cut the longer case catalogue first.

PYQ-M5. 2023 GS-II Q1 - Judicial independence as a prerequisite of democracy

Demand decoding

- "Comment" requires a clear judgment on necessity, then a qualification.
- **10 marks | 150 words:** explain democratic function, safeguards and accountability.

Model answer

Claim: Judicial independence is a necessary, though not sufficient, condition of constitutional democracy because rights and limits are meaningful only when adjudicated without political fear.

Named evidence: Article **32** protects Fundamental Rights; Article **131** provides a neutral federal umpire. Security of tenure under **Article 124(4)**, protected service conditions under **Article 125**, restraint on parliamentary discussion under **Article 121**, contempt authority under **Article 129** and charged expenses under **Article 146** reduce retaliation. **Kesavananda Bharati (1973)*** and the **NJAC judgment (2015)** connect judicial review and independence to basic structure.

Analysis: These safeguards preserve electoral competition, minority rights, federal balance and legality of government.

Qualification: Independence is functional, not immunity. Collegium opacity, recusal, ethics and the gap below removal require transparent accountability.

Verdict: Democracy needs judges independent in deciding and accountable in institutional process; either value without the other damages constitutional trust.

Examiner note: The answer proves why independence matters instead of listing safeguards alone.

Mark/word discipline: 10 marks; target 145-155 words; 3-4 Articles, 2 cases and one accountability qualification.

Why this earns marks: The answer explains democratic function, names structural safeguards and qualifies independence with accountability instead of treating it as judicial privilege.

How to improve this answer: Use Article 32, Article 124(4), Article 121 and the NJAC/basic-structure anchor; add one sentence distinguishing decisional independence from institutional opacity.

PYQ-M6. 2024 GS-II Q14 - Growth of PIL and emergence of a powerful Supreme Court

Demand decoding

- "Explain reasons" and assess power: separate causes of PIL growth from the power verdict.
- **15 marks | 250 words:** origins, remedial instruments, examples, counter-power and qualified judgment.

Model answer

Claim: PIL transformed the Supreme Court into one of the world's most powerful constitutional courts, but the power remains legally bounded and operationally dependent.

Growth evidence: Post-Emergency rights consciousness, relaxed locus standi in **S.P. Gupta (1981)**, epistolary jurisdiction, low-cost Articles **32/226** access and executive/legislative failure opened the Court to prisoners, bonded labourers and vulnerable communities. **Hussainara Khatoon (1979)*** advanced speedy-trial rights; **Vineet Narain (1998)** used continuing mandamus.

Power analysis: PIL combines a broad door with exceptional tools: Article **141** precedent, Article **142** complete justice, Article **129** contempt and basic-structure review of constitutional amendments. Environmental and governance cases therefore produce nationwide norms and monitored remedies.

Qualification: The Court has neither purse nor enforcement service and relies on Article **144** aid. Frivolous petitions, docket displacement and prolonged policy supervision invite an overreach critique. Article 142 cannot violate Fundamental Rights or supplant substantive law.

Verdict: PIL made the Court unusually powerful in rights access and remedy, not sovereign. Its legitimacy depends on evidence, administrable relief, institutional competence and an exit from governance.

Examiner note: "Powerful" is assessed through sources and limits rather than asserted rhetorically.

Mark/word discipline: 15 marks; target 230-250 words; 5 power units, 3 growth causes and 3 limits.

Why this earns marks: It separates causes of PIL growth from sources of judicial power and tests the "most powerful" claim against enforcement and overreach limits.

How to improve this answer: In 250 words use two short subheadings-growth and power-then retain Article 144 dependence and an administrable-remedy conclusion.

PYQ-M7. 2025 GS-II Q11 - Constitutional morality, judicial independence and accountability

Demand decoding

- "Explain" requires defining constitutional morality and applying it to both independence and accountability.
- **15 marks | 250 words:** values, safeguards, accountability gap and synthesis.

Model answer

Claim: Constitutional morality reconciles judicial independence and accountability by demanding fidelity to constitutional role rather than loyalty to either government or corporate judicial interest.

Named evidence: Constitutional morality prioritises rule of law, equality, due process and checks and balances; it was invoked in the Constituent Assembly and developed judicially in cases including **Navtej Singh Johar (2018)** and **Government of NCT of Delhi v. Union of India (2018)**. Independence is secured through Articles **121, 124(4), 125, 129 and 146**, and protected as basic structure in the **NJAC judgment**.

Analysis: These safeguards allow judges to invalidate unlawful majoritarian action. The same morality requires reasoned judgments, consistent refusal, transparent selection criteria, ethical disclosure and fair complaint handling.

Qualification: Removal is an extreme remedy never successfully used against a Supreme Court judge. The **1997 Restatement** and **1999 in-house procedure** are non-statutory, while the **2010 accountability Bill lapsed**. Accountability must not become executive intimidation.

Verdict: Constitutional morality means independence in what a judge decides and accountability in how judicial office is constituted and exercised.

Examiner note: The concept is operationalised through institutions rather than left as an abstract value.

Mark/word discipline: 15 marks; target 230-250 words; definition, 5 safeguards, 4 accountability tools and one warning.

Why this earns marks: The abstract idea of constitutional morality is operationalised through safeguards, ethical process and the gap between in-house correction and removal.

How to improve this answer: Retain a one-line definition, three independence safeguards, three accountability practices and the warning against executive intimidation; drop peripheral case names if compressed.

PYQ-M8. 2025 GS-II Q13 - Collegium evolution and India-USA appointment systems

Demand decoding

- "Critically examine" requires evolution, comparative advantages/disadvantages and a reform verdict.
- **15 marks | 250 words:** do not narrate the Judges Cases without comparison.

Model answer

Claim: India secures judicial insulation at the cost of transparency, while the USA secures visible inter-branch accountability at the cost of partisan politicisation.

Indian evolution: Article **124** uses consultation. **S.P. Gupta (1981)** favoured executive primacy; the **Second Judges Case (1993)*** converted consultation into concurrence and created the collegium; the **1998 Presidential Reference** fixed the Supreme Court collegium at the CJI plus four senior-most judges. The **99th Amendment/NJAC Act** were struck down in **2015** for damaging judicial independence.

India analysis: Judicial primacy limits executive capture and protects basic structure, but opaque criteria, no confirmation hearing, delay and perceived favouritism weaken legitimacy.

USA evidence: The President nominates and the Senate confirms; public hearings expose philosophy and record, while Article III tenure during good behaviour protects later adjudication. Yet partisan voting and ideological vacancies can politicise the Court.

Qualification: Neither system can be transplanted without its wider separation-of-powers context.

Verdict: India should retain decisional insulation while adding a permanent secretariat, published criteria, reasoned resolutions, diversity monitoring and reciprocal processing discipline.

Examiner note: The answer compares institutional trade-offs and ends with India-specific reform, not model shopping.

Mark/word discipline: 15 marks; target 230-250 words; 4 evolution stages, 3 advantages/risks per system and a reform verdict.

Why this earns marks: The answer fulfils every limb: doctrinal evolution, India-USA comparison, costs and a reform verdict grounded in accountable independence.

How to improve this answer: Use a four-stage Judges Cases timeline and a two-column trade-off; preserve the non-transplant qualification and prioritise secretariat, criteria and reasoned resolutions.

Seven audited routed Prelims PYQs

[FACT] Numbering and neutral demands follow the repository's audited local official-paper routing ledgers. A letter is printed only where the final local official Set-A key is held.

PYQ-P1. 2019 Prelims - routed question 46

Verified demand: Removal of Supreme Court judges.

Answer withheld pending official UPSC key.

Answer route: Article 124(4) requires proved misbehaviour or incapacity, a special-majority address in each House and a presidential order; the Judges (Inquiry) Act route begins with 100 Lok Sabha or 50 Rajya Sabha members.

PYQ-P2. 2019 Prelims - routed question 52

Verified demand: Article 142 and constitutional authority.

Answer withheld pending official UPSC key.

Answer route: Article 142 supplies complete justice in a pending cause, but Prem Chand Garg, A.R. Antulay and Supreme Court Bar Association prevent its use against Fundamental Rights, jurisdictional fairness or substantive law.

PYQ-P3. 2019 Prelims - routed question 81

Verified demand: High Court jurisdiction and Supreme Court review.

Answer withheld pending official UPSC key.

Answer route: Article 226 is wider in purpose because it reaches Fundamental Rights and other legal rights; Article 32 is itself a Fundamental Right and remains nationally available for Fundamental Rights.

PYQ-P4. 2021 Prelims - routed question 88

Verified demand: Retired Supreme Court judges and High Court powers.

Answer withheld pending official UPSC key.

Answer route: Article 128 permits a consent-based retired-judge sitting in the Supreme Court; Article 224A is the High Court counterpart; Article 124(7) separately bars former Supreme Court judges from pleading or acting.

PYQ-P5. 2022 Prelims - routed question 11

Verified demand: Contempt of Courts Act and constitutional court powers.

Answer withheld pending official UPSC key.

Answer route: Articles 129 and 215 are constitutional sources; the 1971 Act defines and regulates contempt but cannot extinguish the inherent constitutional power.

PYQ-P6. 2022 Prelims - routed question 12

Verified demand: Advocates and Bar Council powers.

Answer withheld pending official UPSC key.

Answer route: The Bar Council of India is statutory under the Advocates Act, 1961; State Bar Councils enrol advocates, while Court rules separately regulate Supreme Court practice.

PYQ-P7. 2024 Prelims - routed question 83

Verified demand: Writ of Prohibition.

Official Set-A answer: C.

Answer route: Prohibition prevents a lower court or tribunal from continuing without or beyond jurisdiction; certiorari ordinarily quashes a completed decision.

Exactly six original Mains questions with model answers

Original Q1 - 10 marks, 150 words

Explain how Article 131 makes the Supreme Court a federal umpire while preserving jurisdictional limits.

Model answer

Claim: Article 131 makes the Supreme Court a neutral federal umpire through a narrow legal gateway.

Named evidence: It grants exclusive original jurisdiction when the Union and one or more States, opposing Union-State groupings, or two or more States dispute the existence or extent of a legal right. The proviso preserves exclusions linked to specified pre-Constitution instruments, while Article 262 legislation may exclude inter-State water disputes.

Analysis: Direct apex adjudication prevents one constituent government from being forced into another's ordinary courts and authoritatively protects the federal distribution of power.

Qualification: A private party, policy disagreement or political grievance without a legal-right issue does not become an Article 131 dispute.

Verdict: The provision is powerful because it is bounded: it judicialises genuine federal legality without converting the Court into a general political mediator.

Original Q2 - 10 marks, 150 words

How do Article 141 and bench-strength discipline promote legal certainty without freezing constitutional interpretation?

Model answer

Claim: Article 141 creates national legal coherence by binding all courts to the law declared by the Supreme Court.

Named evidence: The binding element is the ratio decidendi, not every factual remark or obiter observation. Judicial discipline requires a smaller bench to follow a larger bench; a coordinate bench that doubts precedent should seek reference rather than overrule it.

Analysis: This hierarchy allows citizens and institutions to plan around stable rules while preventing fragmented constitutional meanings across an integrated judiciary.

Qualification: The Supreme Court is not absolutely bound by its own precedent: review, curative safeguards and a properly constituted larger bench permit principled correction.

Verdict: Article 141 therefore balances certainty with learning-precedent governs until an institutionally competent bench changes the law through reasons.

Original Q3 - 15 marks, 250 words

The collegium protects judicial independence but suffers an accountability deficit. Critically examine.

Model answer

Claim: The collegium secures decisional insulation, but its legitimacy weakens when selection criteria and responsibility remain opaque.

Named evidence: Article 124 originally used consultation. *S.P. Gupta* (1981) favoured executive primacy; *Supreme Court Advocates-on-Record Association* (1993) created judicial primacy; the 1998 Presidential Reference required the CJI plus four senior-most judges for Supreme Court appointments. The 99th Amendment and NJAC Act, 2014 were invalidated in 2015 because the enacted design impaired judicial independence, a basic-structure value.

Analysis: Judicial control reduces the danger that the government rewards compliant judges. Collegial consultation also pools professional knowledge. However, unpublished or thinly reasoned criteria, weak diversity disclosure, delay and perceived favouritism reduce public confidence and blur responsibility between Court and executive.

Qualification: The NJAC ruling did not prohibit every commission model, and criticism of opacity does not justify executive primacy.

Reform: Retain judicial primacy while creating a permanent secretariat, published eligibility and diversity criteria, reasoned resolutions with privacy redactions, fixed processing stages and transparent vacancy data.

Verdict: The constitutional objective is accountable independence: insulation in the decision, transparency in the process.

Original Q4 - 15 marks, 250 words

Article 142 is indispensable for complete justice but dangerous when detached from law. Critically examine.

Model answer

Claim: Article 142 is a remedial power for complete justice in a cause or matter, not a parallel legislative competence.

Named evidence: It allows the Supreme Court to tailor relief where ordinary remedies would leave injustice unresolved. Yet *Prem Chand Garg* (1963) requires consistency with Fundamental Rights. *A.R. Antulay* (1988) shows that complete justice cannot sustain an order that causes jurisdictional unfairness. *Supreme Court Bar Association* (1998) states the controlling formula: Article 142 supplements existing law but cannot supplant substantive law. The 20 November 2025 Article 143 assent opinion rejected rigid judicial timelines and deemed assent under Article 142, while leaving prolonged unexplained inaction reviewable.

Analysis: Flexibility is valuable in complex litigation, restitution and institutional deadlock. But an unbounded equity claim would make outcomes bench-dependent and disturb separation of powers.

Qualification: The 2025 opinion is advisory and issue-specific; it did not generally curtail Article 142 or overrule the April 2025 Tamil Nadu judgment.

Verdict: Article 142 remains legitimate when relief is case-linked, rights-consistent, reasoned and supplementary to law.

Original Q5 - 20 marks, 250 words

Has PIL made the Supreme Court excessively powerful? Analyse through access, remedies and separation of powers.

Model answer

Claim: PIL made the Supreme Court unusually accessible and remedially powerful, but "excessive" depends on whether rights enforcement remains distinct from governance.

Named evidence: *Hussainara Khatoon* (1979) connected Article 21 with speedy trial. *S.P. Gupta* (1981) widened representative standing for those unable to approach courts. Epistolary jurisdiction reduced formality, while *Vineet Narain* (1998) illustrates continuing mandamus. Article 141 gives declared law national reach and Article 142 enables complete justice.

Analysis: These tools opened constitutional courts to bonded labourers, under-trials and environmentally affected groups; they also enabled monitoring where executive inertia made a one-time order ineffective. The same design can overload the docket, reward publicity litigation and turn judges into continuing administrators lacking budgetary or technical capacity.

Named boundary: *Vishaka* (1997) is defensible gap filling because its workplace safeguards were rights-based, temporary and superseded by the 2013 statute. Article 142 remains supplementary, not supplanting.

Qualification: The Court has neither purse nor sword and depends on executive compliance; High Courts under Article 226 remain central to access.

Verdict: PIL created a powerful constitutional court, not an unlimited one. Bona fide standing, evidence, administrability, sunset points and deference outside rights-threatening vacuums preserve legitimacy.

Original Q6 - 20 marks, 250 words

Judicial independence is a prerequisite of democracy, but accountability and access determine its legitimacy. Evaluate and suggest reforms.

Model answer

Claim: Judicial independence is necessary because only an insulated court can enforce rights, review power and umpire federal conflict; it is insufficient unless institutional conduct is accountable and remedies are accessible.

Named evidence: Articles 121, 124 and 125 protect conduct discussion, tenure and service conditions; Articles 129 and 146 protect authority and administration; Article 50 directs separation. *Kesavananda Bharati* (1973) preserves

constitutional supremacy, and the NJAC judgment (2015) treats judicial independence as basic structure.

Analysis: These safeguards reduce retaliation by political branches. Yet the extreme Article 124(4) removal threshold leaves a gap below removal. The 1997 Restatement, 1999 in-house procedure, recusals, asset disclosure and collegium resolutions are important but largely non-statutory or unevenly reasoned. Pendency, cost, language and digital exclusion can make formal independence irrelevant to ordinary litigants.

Qualification: External control may become political pressure; complete self-regulation may become opacity.

Reforms: Establish a permanent appointments secretariat, published criteria, reasoned recusal practice, fair graded complaints procedure, timely vacancy processing, stronger High Courts and legal aid, disciplined SLP admission, case-flow management, translation, accessible e-filing and privacy-secure hybrid hearings.

Verdict: Democracy needs independent decisions, accountable process and practical access-the three are complements, not rivals.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A1. Constitution Benches, precedent and institutional voice

- [FACT] Article 145(3) creates a five-judge minimum, not a five-judge maximum.
- [FACT] Ratio and bench strength determine binding authority under Article 141.
- [ANALYSIS] Frequent small-bench adjudication improves throughput but can create fragmentation when nationally important issues are not referred promptly.
- [LIMIT] A later small bench cannot silently neutralise a larger bench; genuine conflict requires reference.

Visual 43 - Precedent discipline

Find proposition necessary to result
|
identify bench strength
|
compare material facts and legal context
|
apply / distinguish / refer
|
never treat headline or obiter as the entire ratio

A2. Article 141 and Article 142 are different powers

Article 141	Article 142
Declares law binding on all courts	Crafts complete-justice relief in cause before Court
General precedential effect	Case-linked remedial effect
Ratio-centred	Order-centred
Controlled by precedent doctrine	Controlled by Constitution, substantive law and self-restraint

- [ANALYSIS] Confusing the two converts a case-specific remedy into a general law or, conversely, understates the precedential principle that actually binds.
- [LIMIT] A creative Article 142 order should not be casually cited as if it created an unlimited legislative rule.

A3. The Court's power and its compliance dependency

Visual 44 - Power without purse or sword

Judicial review + Article 141 + Article 142 + contempt
|
strong legal authority
|
depends on Article 144 aid
|
executive implementation + legislative response + public legitimacy

- [ANALYSIS] India's Court is powerful because it may review amendments, issue nationwide precedent and fashion strong remedies.
- [LIMIT] It controls neither taxation nor an independent enforcement service. Compliance, administrative capacity and legitimacy remain real limits.
- [ANALYSIS] "World's most powerful judiciary" is therefore a comparative claim best expressed as "among the most powerful constitutional courts, but institutionally bounded."

A4. Continuing mandamus: remedy or administration?

- [ANALYSIS] Continuing mandamus is justified where one judgment cannot end a structural rights violation.
- [FACT] *Vineet Narain* and *T.N. Godavarman* illustrate ongoing judicial supervision.
- [ANALYSIS] Benefits include information disclosure, deadlines and protection against bureaucratic drift.
- [LIMIT] Long supervision risks weak evidence, shifting policy facts and blurred accountability.

Visual 45 - Exit test for continuing supervision

Is a constitutional violation established?
|
Is ordinary one-time relief inadequate?
|
Are benchmarks clear and administrable?
|
Are responsible institutions reporting?
|
Can supervision taper and exit?

A5. Appointment reform matrix

Reform	Independence gain	Accountability gain	Risk/control
Published selection criteria	Low risk to insulation	High transparency	Protect confidential personal material
Permanent secretariat	Consistency and records	Trackable process	Prevent bureaucratic executive control
Reasoned collegium resolutions	Legitimacy	Public explanation	Use proportionate detail
Diversity monitoring	Wider merit pool	Representative legitimacy	Avoid quota-by-rhetoric without pipeline reform
Time-bound processing by rule/law	Reduces vacancy drift	Reciprocal accountability	Preserve lawful reconsideration
Independent complaints framework	Protects institutional integrity	Graded sanctions	Safeguard against political harassment

Advanced verdict: Reform the collegium's process without surrendering its independence rationale.

A6. Concise source and current-control note

- Authoritative Core: Polity/basic/Supreme-Court.md.
- Optional depth: Polity/advanced/18_Supreme-Court.md.
- Cross-link controls: Polity 07, Polity 10, Polity 15, High Court, Administrative Tribunals, Comparative Constitutional Schemes, Constitutional Interpretation Doctrines, and Environment and Ecology 16.
- Official current CJI/judges page: <https://www.sci.gov.in/chief-justice-judges/>.
- Official Collegium Resolutions page: <https://www.sci.gov.in/collegium-resolutions/>.
- Official annual-report page: <https://www.sci.gov.in/indian-judiciary-annual-report/>.
- Official assent opinion: https://api.sci.gov.in/supremecourt/2025/39157/39157_2025_1_1501_66169_Judgement_20-Nov-2025.pdf.
- [LIMIT] Officeholder, working strength, vacancies, women representation, pendency, active Collegium recommendations and report availability require re-verification before future present-tense use.

CONSOLIDATED REGISTER NOTES

Institutional identity and historical transition

Privy Council -> Federal Court, 1937 -> Supreme Court, 28 Jan 1950

Articles 124-147, Part V

Integrated judiciary: SC -> HCs -> subordinate courts

Both Union and State law enforced through one hierarchy

- [FACT] Supreme Court = constitutional apex, final appellate court, federal umpire and Fundamental Rights guarantor.
- [LIMIT] Integrated does not mean High Courts are subordinate administrative branches; their Articles 226/227/235 powers are constitutionally protected.

Composition, seat and bench card

Recall	Control
Sanctioned strength	38 including CJI
Working strength	Live; verify separately
Retirement	65
Seat	Delhi; another place by CJI with President's approval
Constitution Bench	Minimum 5 under Article 145(3)
Current CJI	[CURRENT] Justice Surya Kant; office from 24 Nov 2025; retirement 9 Feb 2027

- **Trap:** Five judges are not required for every constitutional petition.
- **Trap:** Sanctioned strength is not the same as filled strength.

Appointment and collegium chronology

Article 124: President appoints after constitutional consultation

First Judges Case (1981) -> executive primacy

Second Judges Case (1993) -> concurrence; collegium

Third Judges Case (1998) -> CJI + 4 senior-most for SC appointments

2014 99th Amendment + NJAC Act

Fourth Judges Case (2015) -> NJAC invalid; collegium restored

- CJI seniority = convention, not express constitutional rule.
- Collegium = judicial creation, not constitutional/statutory body.
- [CURRENT] Official Collegium listing includes 27 May 2026 Supreme Court appointment statement.
- [LIMIT] Do not freeze pending recommendation or delay counts.

Qualification, oath and service quick card

- Indian citizen plus:

- five years as High Court judge; or
- ten years as High Court advocate; or
- distinguished jurist in President's opinion.
- No minimum age.
- Oath under Article 124(6): Constitution, sovereignty/integrity, fearless and impartial duty.
- Retirement at 65; resignation to President.
- Salary/conditions protected; expenses charged under Article 146(3).
- Former SC judge cannot plead or act before any court/authority in India: Article 124(7).

Removal firewall

100 LS / 50 RS notice

->

Speaker/Chairman admission

->

3-member inquiry

SC judge + HC CJ + distinguished jurist

->

proved misbehaviour or incapacity

->

each House:

majority of total membership

+ 2/3 present and voting

->

President removes

- Constitution says **removal**, not impeachment.
- No Supreme Court judge has ever been removed.
- High threshold protects tenure but leaves a graded-accountability gap.

Independence safeguards

Device	Article/instrument	Purpose
Hard removal	124(4)	Security of tenure
Protected conditions	125	Reduces financial retaliation
Conduct-discussion restraint	121	Prevents routine parliamentary pressure
Court of record/contempt	129	Protects justice process
Binding law	141	Uniform legal authority
Court staff/expenses	146	Administrative autonomy
Practice bar	124(7)	Limits later courtroom conflict
Separation directive	50	Wider judicial independence

- Judicial independence and review = basic structure.
- Functional independence is for impartial adjudication, not personal privilege.

Accountability and ethics

- Open court, reasoned judgment, appeal, review, criticism and recusal = everyday accountability.
- Restatement of Values of Judicial Life, 1997 = non-statutory.
- In-house procedure, 1999 = non-statutory.
- Judicial Standards and Accountability Bill, 2010 = lapsed, never law.
- Reform aim = transparent appointments + fair complaints + protection against political harassment.

Jurisdiction master grid

Jurisdiction/power	Article	Memory phrase
Original federal disputes	131	Legal-right dispute among specified governments
Fundamental Rights writ	32	Guaranteed remedy
Constitutional appeal	132	Substantial constitutional question
Civil appeal	133	General-importance law question
Criminal appeal	134	Specified/certified route
Certificate	134A	High Court certification
Special leave	136	Discretionary; no Armed-Forces court/tribunal
Review	137	Narrow self-correction
Advisory	143	Presidential reference; non-binding
Court of record/contempt	129	Record + constitutional contempt

Article 131 federal gateway

- Parties: Union-State configurations or State-State.
- Subject: existence/extent of legal right.
- Original + exclusive.
- No private-party general jurisdiction.
- Article 262 may exclude inter-State water disputes.
- Pure political disagreement is insufficient.

Five-writ selection

Defect	Writ
Illegal detention	Habeas corpus
Unperformed public duty	Mandamus
Threatened jurisdictional excess	Prohibition
Completed illegal order	Certiorari
Usurped public office	Quo warranto

- Prohibition = preventive; certiorari = quashing/corrective.
- Habeas corpus can reach private detention.
- Mandamus does not ordinarily command a private duty or President/Governor personally.

Article 32 versus Article 226

Article 32	Article 226
Itself a Fundamental Right	Constitutional discretionary power
FR enforcement only	FRs + other legal rights/public duties
National reach	Territorial/cause-of-action reach
Narrower in purpose	Wider in purpose

- *L. Chandra Kumar (1997)*: Articles 32 and 226/227 review = basic structure.
- "Article 226 wider" never means High Court can overrule Supreme Court.

Appeals and SLP

132 constitutional
133 civil
134 criminal
134A certificate
136 special leave

- Article 136 = discretionary exceptional gateway, not ordinary right.
- Express exclusion: court/tribunal constituted under Armed-Forces law.
- SLP-heavy docket creates constitutional-role and pendency concerns.

Article 143 and current assent control

- Article 143(1): President refers public-importance law/fact question; Court may report.
- Article 143(2): specified pre-Constitution treaty/covenant class; Court shall report.
- Opinion = advisory, non-binding.
- [CURRENT] 20 Nov 2025, 2025 INSC 1333:
- no rigid court-made assent timelines;
- no deemed assent under Article 142;
- prolonged unexplained inaction remains reviewable.
- [LIMIT] Advisory opinion did not "overrule" *State of Tamil Nadu v. Governor* (8 Apr 2025).

Review and curative

Judgment -> Article 137 review -> exceptional curative

- Review = narrow, not fresh appeal.
- Curative = *Rupa Ashok Hurra (2002)*; gross miscarriage after review, especially natural-justice/bias failure.
- Finality plus correction, not endless litigation.

Court of record and contempt

- Article 129 = record + constitutional contempt.
- Contempt of Courts Act, 1971 regulates civil/criminal contempt.
- Statute does not cut constitutional power.
- Bona fide public-interest truth can be a defence.
- Fair criticism is not automatically contempt.
- Use power against obstruction of justice, not institutional sensitivity.

Articles 141, 142, 144 and 145

Article	Rapid recall
141	Law declared binds all courts; ratio and bench strength matter
142	Complete justice in cause; supplement, not supplant
144	Civil and judicial authorities act in aid
145	Court rules; minimum five for specified constitutional matters

Article 142 hard limits

Prem Chand Garg 1963 -> cannot violate Fundamental Rights

SCBA 1998 -> cannot supplant substantive law

2025 assent opinion -> no rigid clocks/deemed assent

- Article 142 is remedial, not freestanding legislative jurisdiction.

Acting, ad hoc and retired judges

Article	Device
126	Acting CJI
127	Ad hoc judge
128	Retired judge requested to sit
124(7)	Former SC judge cannot plead or act

- Retired deployment = capacity tool, not vacancy substitute.
- Post-retirement public roles may be lawful but raise perception concerns.

Judicial-review and basic-structure spine

Ordinary law -> competence + FR + other constitutional provision
Constitutional amendment -> Article 368 + basic structure
Ninth Schedule after 24 Apr 1973 -> Coelho rights/basic-feature impact
Tribunal -> HC review under L. Chandra Kumar (1997)

- *Kesavananda Bharati* (1973) = amendment allowed, basic structure not destroyable.
- *Minerva Mills* (1980) = limited amendment, review and FR-DPSP balance.
- Ordinary law not invalid solely because "against basic structure"; identify express constitutional violation.

Ninth Schedule recall

- Article 31B/Ninth Schedule: First Amendment, 1951.
- *Waman Rao*: 24 April 1973 cut-off.
- *I.R. Coelho* (2007): post-cut-off insertion reviewable for basic-structure damage through rights impact.
- Reviewable does not mean automatically void.

Tribunal boundary

- Articles 323A/323B enable specialised tribunals.
- *L. Chandra Kumar* (1997): tribunal -> HC Division Bench review -> SC route.
- Tribunals supplement, not supplant.
- *Madras Bar Association* line protects independent appointment/tenure design.
- Efficiency requires capacity; forum transfer alone shifts delay.

PIL evolution and control

relaxed locus standi
+
epistolary jurisdiction
+
continuing mandamus
=
expanded access + expanded remedial power

- *Hussainara Khatoon* (1979): undertrials/speedy trial.
- *S.P. Gupta* (1981): relaxed standing.
- *Vineet Narain* (1998): continuing mandamus.
- Benefits: voice, access, structural remedy.
- Risks: publicity litigation, docket displacement, weak evidence, permanent governance.
- Legitimacy test: rights injury + bona fide petitioner + administrable remedy + exit.

Activism, restraint and judicial legislation

- Activism = assertive constitutional interpretation/remedy.
- Restraint = deference within constitutional enforcement.
- *Vishaka* (1997) = interim rights-linked norms until 2013 statute.
- Functional separation permits bounded overlap, not permanent judicial law-making.

- Court should adjudicate; elected institutions should ordinarily design and administer policy.

Environmental constitutionalism case chain

Case	Rule
<i>Subhash Kumar</i>	Article 21 pollution-free environment
<i>M.C. Mehta Oleum</i>	Absolute liability
<i>Vellore Citizens</i>	Precaution, polluter pays, sustainable development
<i>M.C. Mehta v. Kamal Nath</i>	Public trust
<i>T.N. Godavarman</i>	Forest interpretation + continuing mandamus

- Constitutional anchors: Articles 21 + 48A + 51A(g).
- Courts constitutionalise; regulators implement.
- NGT/CPCB/SPCB/governments remain indispensable.

Women and diversity

- First woman Supreme Court judge: Justice M. Fathima Beevi, 1989.
- Reasons: equality, legitimacy, perspective, role models.
- Pipeline: education -> Bar retention -> briefs/designation -> HC pool -> SC.
- Diversity complements merit by correcting unequal opportunity.
- [LIMIT] Do not cite a current percentage without official dated verification.

India-UK comparison

India	United Kingdom
Written supreme Constitution	Uncodified constitution
Strong-form review of legislation	Westminster Acts ordinarily not invalidated
Basic-structure review of amendments	Parliamentary sovereignty
Integrated hierarchy	Distinct UK legal systems with UKSC apex functions

- Common ground: precedent, independence, reasoned decisions, executive review.
- Main divergence: constitutional supremacy versus parliamentary sovereignty.

India-USA comparison

India	USA
Collegium recommendation	President nominates, Senate confirms
Retirement at 65	Life during good behaviour
No required public confirmation	Public political hearing
Integrated judiciary	Dual federal-State courts
Article 143 advisory reference	Case-or-controversy restriction

- India risk: opacity/delay.
- USA risk: partisan ideological conflict.
- Reform goal: accountable independence, not transplantation.

Bar and profession card

- Advocates Act, 1961.
- BCI = statutory, national standards/legal education/professional conduct/appellate discipline.
- State Bar Councils = enrolment and statutory disciplinary role.

- Supreme Court Rules regulate practice; Advocate-on-Record is a specialised mechanism.
- SCBA is an association, not the national statutory regulator.

Pendency, access and e-Courts

inflow + government appeals + vacancies + adjournments + SLP load

->

delay + cost + unequal access

- [CURRENT] Latest visible comprehensive annual report: 2024-25.
- [LIMIT] No later comprehensive official annual report was relied on by 7 September 2026; no unsupported live pendency total is printed.
- Reform stack:
 - predictable Constitution Bench calendar;
 - disciplined SLP admission;
 - case-flow management;
 - reduced routine government litigation;
 - stronger HCs and legal services;
 - e-filing/hybrid access with physical assistance;
 - translation, accessible judgments, neutral citations;
 - privacy and cybersecurity;
 - compliance tracking with exit points.

PYQ routing map

Year	Demand
2020 Q4	India-UK judicial systems
2020 Q12	Judicial legislation, separation of powers and PIL
2021 Q2	Women in higher judiciary
2022 Q1	Environmental constitutionalisation
2023 Q1	Judicial independence
2024 Q14	PIL growth and powerful judiciary
2025 Q11	Constitutional morality, independence and accountability
2025 Q13	Collegium and India-USA comparison

Universal Mains answer checklist

1. Decode directive and every sub-demand.
2. State a direct thesis.
3. Use claim -> named evidence -> analysis -> qualification.
4. Match evidence load to 10/15/20 marks.
5. Separate constitutional text, case law, statute, convention and current status.
6. Use a degree-based verdict, not "balanced" vagueness.
 - 10 marks: 2-3 precise units.
 - 15 marks: 4-6 units plus counterpoint.
 - 20 marks: 5-8 units plus institutional consequences and reform.

Final rapid-fire traps

1. Sanctioned strength **38 including CJI**; working strength is live.
2. SC retirement **65**; HC retirement **62**.
3. No minimum appointment age.
4. Distinguished jurist is eligible for SC.

5. Constitution Bench = minimum **5** under Article 145(3).
6. CJI seniority = convention, not Article text.
7. Collegium = judicial creation.
8. Constitution says judge **removal**, not impeachment.
9. Notice = **100 LS / 50 RS**.
10. No Supreme Court judge has ever been removed.
11. Article 32 is narrower in purpose than Article 226.
12. Prohibition prevents; certiorari quashes.
13. Article 136 excludes Armed-Forces court/tribunal.
14. Article 143 opinion is non-binding.
15. Article 142 supplements, does not supplant.
16. Article 142 cannot override Fundamental Rights or substantive law.
17. Contempt power is constitutional; statute does not cut it down.
18. Article 141 binds through ratio and bench strength.
19. Article 128 sitting differs from Article 124(7) practice bar.
20. Post-1973 Ninth Schedule insertion is reviewable, not automatically void.
21. Tribunals remain under High Court review.
22. PIL relaxes standing; it does not erase legal injury or evidence.
23. *Vishaka (1997)* norms were interim and yielded to the 2013 statute.
24. Environmental right is built through Articles 21, 48A and 51A(g).
25. BCI is statutory, not constitutional.
26. UK Constitution is uncodified, not literally unwritten.
27. Do not freeze vacancy, pendency or women-percentage figures.
28. 2025 assent opinion rejected rigid timelines/deemed assent but did not "overrule" the April judgment.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Identity, origin, composition and current control

Privy Council -> Federal Court of India (1937) -> Constitution, 26 Jan 1950
 -> Supreme Court inaugurated, 28 Jan 1950.

ARTICLES 124-147, PART V -> apex constitutional + federal + appellate court.
 Integrated hierarchy -> Supreme Court -> High Courts -> subordinate courts.
 Article 141 promotes national legal uniformity; Articles 226/227/235 preserve High Court authority.

CURRENT CONTROL, 7 SEPTEMBER 2026

Act 14 of 2026, s.2 -> 1956 Act: "thirty-three" replaced by "thirty-seven";
 deemed in force 16 May 2026 -> sanctioned strength 38 including CJI.
 Official SCI roster -> 34 sitting judges including CJI Surya Kant -> 4 vacancies.
 LIMIT: roster/vacancy figures are volatile; re-verify before later use.

ASCII MASTER FLOW - PANEL 2/12: Article 124 appointments and the collegium timeline

TEXT -> President appoints; required consultation; other judges require CJI consultation.
CONVENTION -> senior-most SC judge considered fit ordinarily appointed CJI;
breached in 1973 (A.N. Ray) and 1977 (M.H. Beg); not express constitutional text.

S.P. Gupta / First Judges (1981) -> consultation not concurrence; executive primacy.
SCAORA / Second Judges (1993) -> judicial primacy; collegium created; CJI view institutional.
Third Judges / Presidential Reference (1998) -> SC collegium = CJI + 4 senior-most judges.
99th Amendment (2014) + NJAC Act, 2014 -> six-member commission model.
SCAORA / Fourth Judges-NJAC (2015) -> design invalid for damaging judicial independence;
collegium restored. LIMIT: no holding that every possible commission is unconstitutional.

ASCII MASTER FLOW - PANEL 3/12: Qualifications, oath, tenure, removal and finance

ARTICLE 124 -> Indian citizen + 5 years HC judge OR 10 years HC advocate
OR distinguished jurist in President's opinion; no minimum age; retirement at 65.
ARTICLE 124(6) + THIRD SCHEDULE -> constitutional oath; resignation addressed to President.
ARTICLE 124(4) -> proved misbehaviour/incapacity -> special-majority address in each House
in same session -> presidential removal order. No joint sitting; no SC judge removed.
Judges (Inquiry) Act, 1968 -> notice: 100 LS or 50 RS -> presiding officer -> 3-member inquiry.

ARTICLE 125 -> salary by law; allowances/leave/pension not varied to disadvantage,
except Financial Emergency. ARTICLE 112(3)(d)(i) -> judges' salaries charged expenditure.
ARTICLE 146(3) -> Court administrative expenses charged on Consolidated Fund of India.
ARTICLE 124(7) -> former SC judge cannot plead/act before any Indian court or authority.

ASCII MASTER FLOW - PANEL 4/12: Temporary judges, independence and accountability

ARTICLE 126 -> President appoints acting CJI when office is vacant or CJI cannot act.
ARTICLE 127 -> ad hoc qualified HC judge requested where quorum unavailable;
CJI acts with presidential consent and after consulting the HC Chief Justice.
ARTICLE 128 -> CJI may, with presidential consent and person's consent, request an
eligible retired SC judge or qualified retired HC judge to sit and act.

INDEPENDENCE -> tenure + protected conditions + Article 121 conduct shield
+ Article 129 contempt + Article 50 separation + appointment insulation.
ACCOUNTABILITY -> reasoned judgments + open court + recusal + asset disclosure
+ 1997 Restatement + 1999 in-house procedure + Article 124(4) endpoint.
LIMITS -> in-house process is non-statutory; no exhaustive recusal code; lapsed Bill is not law.
VERDICT -> independence in decisions must coexist with transparent institutional process.

ASCII MASTER FLOW - PANEL 5/12: Original, writ and transfer jurisdiction

ARTICLE 131 -> exclusive original jurisdiction for listed Union-State/State-State parties
where existence or extent of a legal right is in dispute.
LIMITS -> political disagreement/private party excluded; treaty proviso checked;
Article 262 law may exclude inter-State water-dispute jurisdiction.
ARTICLE 71 -> President/Vice-President election disputes: separate original jurisdiction.

ARTICLE 32 -> guaranteed Supreme Court remedy for Fundamental Rights; five writs.
ARTICLE 226 -> High Court: Fundamental Rights + other legal rights; wider in purpose.
ARTICLE 138 -> Parliament may enlarge Supreme Court jurisdiction by law.
ARTICLE 139 -> Parliament may confer additional writ powers beyond Article 32 purposes.
ARTICLE 139A -> withdrawal of same/substantially same substantial legal questions
and inter-High-Court transfer in specified circumstances.

ASCII MASTER FLOW - PANEL 6/12: Appeals, special leave, review and curative relief

ARTICLE 132 -> constitutional appeal with High Court certificate.
ARTICLE 133 -> civil appeal under constitutional/statutory conditions.
ARTICLE 134 -> specified criminal appeals.
ARTICLE 134A -> High Court considers certificate after judgment/order.
ARTICLE 135 -> pre-Constitution Federal Court jurisdiction continues where applicable.
ARTICLE 136 -> extraordinary discretionary SLP from court/tribunal;
express Armed-Forces court/tribunal exclusion; not a regular fourth appeal.

ARTICLE 137 -> Supreme Court reviews own judgment/order subject to law and rules.
Rupa Ashok Hurra (2002) -> rare curative petition after review for gross miscarriage,
natural-justice failure or bias; strict certification/screening; not a second ordinary review.

ASCII MASTER FLOW - PANEL 7/12: Record, precedent, complete justice, aid and rules

ARTICLE 129 -> court of record + constitutional contempt power.
Contempt of Courts Act, 1971 -> regulates civil/criminal contempt; cannot extinguish Art 129.
Fair criticism and bona fide public-interest truth protect democratic scrutiny.

ARTICLE 141 -> law declared binds all courts; ratio + bench strength control.
ARTICLE 142 -> complete justice in cause/matter before Court.
Prem Chand Garg (1963) -> cannot violate Fundamental Rights.
A.R. Antulay (1988) -> cannot sustain jurisdictional unfairness under complete justice.
Supreme Court Bar Association (1998) -> supplementary; cannot supplant substantive law.
ARTICLE 144 -> all civil and judicial authorities act in aid.
ARTICLE 145 -> Court rules with presidential approval; 5-judge minimum for Article 143
references and substantial constitutional-interpretation questions.

ASCII MASTER FLOW - PANEL 8/12: Advisory jurisdiction and Articles 140, 143, 146, 147

ARTICLE 143(1) -> President may refer public-importance law/fact question;
Court may hear and report. ARTICLE 143(2) -> proviso-to-131 dispute; shall hear/report.
Opinion is advisory, not an ordinary binding decree and does not overrule a judgment.

20 NOVEMBER 2025 ASSENT OPINION, 2025 INSC 1333 -> no rigid judge-made assent
timeline or deemed assent under Article 142; prolonged unexplained inaction remains reviewable.
LIMIT -> issue-specific advisory control, not a general curtailment of Article 142.

ARTICLE 140 -> Parliament may confer ancillary powers needed for effective jurisdiction.
ARTICLE 146 -> CJI/authorised officer controls appointments of Court staff subject to text;
service rules and charged administrative expenditure protect institutional administration.
ARTICLE 147 -> interpretation references include Government of India Act, 1935 and specified
historical enactments/orders for this Chapter and Chapter V of Part VI.

ASCII MASTER FLOW - PANEL 9/12: Judicial review, interpretation and tribunal boundary

JUDICIAL REVIEW -> legality of legislation, executive action and amendment effect;
flows through Articles 13, 32, 131-136, 143, 226, 246, 251, 372 and structure.
Kesavananda Bharati (1973) -> Article 368 power cannot damage Basic Structure.
Minerva Mills (1980) -> limited amendment power and Parts III-IV harmony are protected.
I.R. Coelho (2007) -> post-24 Apr 1973 Ninth Schedule insertions face impact review;
reviewability does not mean automatic invalidity.

L. Chandra Kumar (1997) -> Articles 226/227 and 32 judicial review are Basic Structure;
tribunals supplement adjudication, but their decisions remain under High Court review.
INTERPRETIVE DISCIPLINE -> text + structure + precedent + purpose; legality, not policy wisdom.

ASCII MASTER FLOW - PANEL 10/12: PIL, judicial legislation and open justice

Hussainara Khatoon (1979) -> Article 21 speedy-trial protection for under-trials.
S.P. Gupta (1981) -> representative standing widened for persons unable to approach Court.
EPISTOLARY JURISDICTION -> letters may be treated as petitions after bona fide screening.
Vineet Narain (1998) -> continuing mandamus supports monitored compliance.

Vishaka (1997) -> rights-based interim workplace norms in a legal vacuum;
yielded to Sexual Harassment of Women at Workplace Act, 2013.
LIMIT -> court may bridge a rights-threatening vacuum, not become permanent administrator.

Swapnil Tripathi (2018) -> live streaming of suitable constitutional/national-importance proceedings advances open justice, subject to privacy, fair-trial and administrative safeguards.
K.S. Puttaswamy (2017) -> privacy is a Fundamental Right shaping digital-court safeguards.

ASCII MASTER FLOW - PANEL 11/12: Procedure, profession, access and current reform

BENCHES -> CJI as master of roster allocates cases/constitutes benches under institutional rules;
larger Bench binds smaller; coordinate disagreement goes to appropriate larger Bench.
SEAT -> Delhi under Article 130; another place by CJI with President's approval.
SUPREME COURT RULES, 2013 -> filing, review, curative and practice procedure.

ADVOCATES ACT, 1961 -> State Bar Councils enrol; BCI sets statutory national standards
and hears specified disciplinary appeals. Supreme Court Rules -> Advocate-on-Record system.
ARTICLE 76 / ATTORNEY-GENERAL -> Union chief legal adviser with right of audience;
may assist/represent before Court but is not Court officer, collegium member or BCI.

REFORM CHAIN -> legal aid + physical/digital filing help + translation + hybrid hearings
+ neutral citations + e-Courts + cybersecurity/privacy + case-flow management
+ disciplined SLP admission + stronger High Courts. No unsupported live pendency total.

ASCII MASTER FLOW - PANEL 12/12: Traps, PYQ routes and examiner-ready answer spine

PRELIMS FIREWALL

38 sanctioned / 34 working / 4 vacancies only on 7 Sep 2026 | retirement 65
CJI seniority convention | collegium judicial creation | removal, not constitutional impeachment
Article 32 narrower in purpose than 226 | prohibition prevents; certiorari quashes
Article 136 discretionary + Armed-Forces exclusion | Article 143 advisory
Article 142 supplementary, not supplanting | Constitution Bench minimum five
Article 128 sitting != Article 124(7) practice bar | BCI statutory, SCBA association.

PYQ ROUTES -> India-UK | judicial legislation/PIL | women | environmental constitutionalism
| judicial independence | PIL and powerful Court | constitutional morality | India-USA collegium.

MAINS SPINE

define role -> classify source (text/statute/judgment/convention/current practice)
-> exact Article/case holding -> mechanism -> consequence -> counterpoint/limit
-> matched reform -> qualified verdict.

VERDICT -> The Supreme Court guards constitutional supremacy only when independent authority
is joined to reasoned restraint, accountable process, accessible remedies and executable orders.